Chapter 1: Department of Sanitation

§ 16-101 Definitions.

When used in this title the following terms shall have the following meanings:

(1) "Department" shall mean the department of sanitation.

(2) "Commissioner" shall mean the commissioner of sanitation.

(3) "Street" includes street, avenue, road, alley, lane, highway, boulevard, concourse, driveway, culvert and crosswalk, and every class of road, square and place, and all parkways and through vehicular park drives except a road within any park or a wharf, pier, bulkhead, or slip by law committed to the custody, and control of the department of ports and terminals.

§ 16-102 Secretary.

The commissioner shall appoint and at pleasure may remove a secretary of the department.

§ 16-103 Uniformed forces.

The commissioner, from time to time, shall prescribe distinctive uniforms, badges and insignia to be worn and displayed by members of the uniformed force and prescribe and enforce penalties for the failure of any member of such force to wear and exhibit the same while engaged in the performance of his or her duties.

§ 16-104 Records.

All transactions of the commissioner and all documents and records in the possession of the department shall be matters of public record and open to public inspection, except such documents and records as shall be prepared by or for counsel for use in actions or proceedings to which the city or commissioner is a party.

§ 16-105 Drivers or sweepers; temporary employment of.

Any person registered or eligible to appointment as a driver, or as a sweeper, may be employed temporarily at any time as an extra driver or sweeper to replace a driver or sweeper who is suspended or temporarily absent from duty for any cause. The driver or sweeper whose place is so filled shall not receive any compensation for the time during which he or she is so absent from duty or his or her place is so filled, unless such absence results from injury or illness caused by service in the department.

§ 16-106 Removal and suspension of employees.

a. The commissioner, in his or her discretion, shall have power to punish any member of the uniformed force who has been guilty of:

1. any legal or criminal offense,
2. neglect of duty,
3. violation of rules,
4. neglect or disobedience of orders,
5. incapacity,
6. absence without leave,
7. conduct injurious to the public peace or welfare,
8. immoral conduct, or
9. any breach of discipline, by forfeiting or withholding pay for a specified time, not exceeding thirty days; by suspension, without pay during such suspension, for a period not exceeding thirty days; or by dismissal from the force. The commissioner may withhold pay, salary or compensation from any member or members of the force for absence for any cause without leave.

b. All pay deducted or forfeited under the provisions of this section shall be retained by the commissioner of finance to the credit of the department, and shall be applicable, in the discretion of the commissioner, to any of the purposes of such department as if originally appropriated therefor.

c. A member of the department shall be dismissed only after he or she has been informed of the cause of the proposed dismissal and has been allowed an opportunity of making an explanation.

d. In the event of the dismissal of any member of the force, he or she shall have the right to a review of the action of the commissioner or his or her deputy by certiorari or other appropriate remedy. Upon being successful in such proceeding, he or she shall be entitled to be reinstated and to receive full pay during the time of his or her suspension or dismissal from office.

e. When and as soon as a member of the uniformed force has been fined, suspended or dismissed, the true cause for such fine, suspension or dismissal shall be entered in writing in a book to be kept for that purpose by the commissioner.

§ 16-107 Leaves of absence.

a. A leave of absence to any member of the uniformed force shall not exceed twenty days in any one year, in addition to any vacation period, except upon condition that such member shall waive or release not less than one-half of all salary, pay or compensation and claim thereto, or any part thereof, during such absence.

b. Absence without leave of any member of the uniformed force for five consecutive days shall be deemed and held to be a resignation, and at the expiration of such period the member so absent shall cease to be a member of such force and may be dismissed therefrom without notice.

§ 16-108 Salary during absence from duty by injury or sickness.

Each person employed in the sanitation service classification of the classified civil service shall be paid full pay or compensation during absence from duty caused by injury or sickness, except as otherwise provided by law, and subject to such rules and regulations as may be adopted by the commissioner.

§ 16-108.1 Receipt of line of duty pay.

a. A member of the uniformed force of the department of sanitation shall be entitled pursuant to this section to the full amount of his or her regular salary for the period of any incapacity due to illness or injury incurred in the performance and discharge of duty as a member of the uniformed force, as determined by the department.

b. Nothing in this section shall be construed to affect the rights, powers and duties of the commissioner pursuant to any other provision of law, including, but not limited to, the right to discipline a member of the uniformed force by termination, reduction of salary, or any other appropriate measure; the power to terminate an appointee who has not completed his or her probationary term; and the power to apply for ordinary or accident disability retirement for a member of the uniformed force.

c. Nothing in this section shall be construed to require payment of salary to a member of the uniformed force who has been terminated, retired, suspended or otherwise separated from service by reason of death, retirement or any other cause.

d. A decision as to eligibility for benefits pursuant to this section shall not be binding on the medical board or the board of trustees of any pension fund in the determination of eligibility for an accident disability or accidental death benefit.

e. As used in this section the term "incapacity" shall mean the inability to perform full, limited, or light duty.

§ 16-109 Sanitation service; absence from duty because of injury or illness incurred prior to April eighteenth, nineteen hundred sixty-two.

Each person employed in the sanitation service classification of the classified civil service on October tenth, nineteen hundred sixty-two who, prior to April eighteenth, nineteen hundred sixty-two, incurred an injury or illness, and who was or is absent from duty in such employment on or after April eighteenth, nineteen hundred sixty-two, as a result of such injury or illness incurred prior to such date, shall be entitled to receive as pay or salary during such absence or absences, an amount equal to the difference between (a) the total of all payments and awards to such employee under the workers' compensation law by reason of such injury or illness, exclusive of the death benefit provided for in section sixteen of the workers' compensation law; and (b) the amount which such employee would have received in full pay or compensation for absences from such duty on or after April eighteenth, nineteen hundred sixty-two because of such injury or illness if section 16-108 of this title, as qualified by the rules and regulations adopted by the commissioner pursuant to such section, were applicable thereto; provided that the amount to which such employee would have been entitled if such section were applicable is greater than the total specified in item (a) hereof. The commissioner, with the approval of the mayor, may adopt rules and regulations in accordance with the procedure prescribed in section eleven hundred five of the charter, setting forth the manner in which the amounts required to be paid under this section shall be payable. Such rules and regulations may also provide that the amount required to be paid under this section for any period during which such employee was absent, or any part of such amount, may be paid to an employee in a lump sum or weekly installments or a combination of both prior to the date upon which the total specified in item (a) is known or determined, on condition that such employee execute an agreement, in a form approved by the corporation counsel, consenting to reimburse the city for any overpayment to him or her resulting from such prior payment, either at the time the amounts specified in item (a) hereunder are received by such employee or by salary deductions to be authorized by such employee in such agreement. Such rules and regulations may contain such other provisions as may be necessary to carry out the purposes of this section.

§ 16-110 Recommendations for amendment of health code.

The commissioner, from time to time, shall propose to the board of health such additions to or amendments of the health code as in his or her opinion will promote sanitary control in the city and conduce to the security of the comfort, life and health of its inhabitants. The commissioner shall set forth fully the reasons for the proposed changes.

§ 16-111 Division of streets into districts; allotment of sweepers.

The commissioner shall divide the city into a suitable number of districts, each of which shall be under the charge of a district superintendent or supervisory officer who shall be directly responsible to the commissioner for the cleanliness of his or her district. Each of such districts shall be subdivided by such commissioner into sections in charge of foremen or subordinate supervisory officers responsible to such district superintendent or supervisory officer, as well as to the commissioner, for the cleanliness of his or her section.

§ 16-111.1 Reductions in street cleaning.

a. For purposes of this section, "qualifying district" shall mean a sanitation district, or any portion of such district, where each side of the street is scheduled to receive department street cleaning on more than one day each week, and where such sanitation district achieves a cleanliness acceptability rating under the mayor's office of operations scorecard program that is equal to or greater than an average score of ninety percent for the two consecutive fiscal years prior to a community board's request pursuant to subdivision b of this section.

b. Upon written request by the community board for the community district within which a qualifying district is located, the department shall reduce the weekly scheduled frequency of street cleaning by one day for such qualifying district. Prior to making its written request, any such community board shall to the extent practical notify major utilities and communications providers servicing the qualifying district that provide services to 500,000 or more households citywide and that have given such community board appropriate contact information. Failure to notify such utilities and communications providers shall not invalidate any such written request. In making its determination, the community board shall consider the impact of such a request on such utilities and communications providers' ability to install, repair and maintain critical infrastructure in such district.

c. Notwithstanding the provisions of subdivisions a and b of this section, such reduction in frequency shall not apply to metered streets or those portions of a qualifying district that receive department street cleaning between the hours of midnight and 6:00 a.m.

d. In qualifying districts where, pursuant to subdivision b of this section, the department has reduced street cleaning or a community board has requested such a reduction, the department shall have the option to resume or maintain the original street cleaning schedule if the sanitation district receives an average score of less than ninety percent under the mayor's office of operations scorecard program for any period of three consecutive months, or if the average score for such sanitation district falls below ninety percent over a period of two consecutive fiscal years.

§ 16-111.2 Posting information online about street cleanings.

a. *Definitions.* For purposes of this section, the following terms have the following meanings:

Street cleaning regulations. The term "street cleaning regulations" means parking regulations created for the purposes of facilitating street cleaning that are either: (i) on posted signs consisting of the letter "P" with a broom through it, or (ii) on posted signs containing "No Parking" rules restricting parking on one day per week or on alternate days, except that signs restricting parking for a period of six or more consecutive hours on one day per week or on alternate days are not street cleaning regulations.

Global positioning system. The term "global positioning system" or "GPS" means the global positioning system, or a comparable location tracking technology, that uses navigational satellites to determine a location in real time and is capable of collecting, storing and transmitting geographical data.

Street sweeper. The term "street sweeper" means a vehicle under the jurisdiction of the department that is equipped with a mechanical broom to clean streets.

b. *GPS equipment.* The commissioner shall require that all street sweepers be equipped with GPS technology and that such technology is in operation during street cleaning.

c. *Publication of information regarding progress of street sweepers.* Not later than December 31, 2023, the commissioner, in consultation with the department of information technology and telecommunications and the department of transportation, shall publish and maintain a page on the department's website that allows the public to track the progress of street sweepers in servicing blocks with scheduled street cleaning regulations, using data from GPS devices installed on such sweepers. Such GPS data shall be preserved and publicly available on a city website. Such reported information shall not be construed to allow a driver to park on a block where parking is prohibited by street cleaning regulations during the time such street cleaning regulations are in effect.

d. *Report.* Not later than June 30, 2024, and every six months thereafter for two years, the commissioner shall submit a report on street cleaning, using data from GPS devices installed on street sweepers, to the mayor and the speaker of the council and post such report on the department's website. Such report shall include, but not be limited to:

1. The number of routes a street sweeper was scheduled to service in such sanitation district in accordance with posted street cleaning regulations;

2. The percentage of routes completed by a street sweeper in such district; and

3. Any explanation as to why routes in such district were not completed as scheduled, if applicable.

(L.L. 2023/009, 1/21/2023, eff. 1/21/2023)

§ 16-112 Flushing or washing streets; water.

Whenever the commissioner of environmental protection shall determine that there is a sufficient supply of water for the purpose, such commissioner may permit the commissioner to use as much water as may be necessary for the flushing or washing of the public streets.

§ 16-113 Removal of night soil and offal.

The department is hereby charged with the duty of causing the removal of dead animals, night soil and offal from the thickly populated districts daily, and as often as may be necessary elsewhere, and of keeping the city clean from all matter of nuisance of a similar kind.

§ 16-114 Rates for collection and disposal.

The commissioner may charge for the collection and disposal of ashes, street sweepings, garbage, refuse, rubbish, dead animals, night soil and offal, and all wastes, including trade waste from business, industrial, manufacturing, or other establishments conducted for profit, at rates established by the council by local law, upon recommendation of the commissioner, and on such terms and conditions as the commissioner shall prescribe and subject to rules of the department governing such collection and disposal.

§ 16-114.1 Rates for collection and disposal of solid waste from home occupations, medical offices/group medical centers, and other residential offices.

a. As used in this section:

1. The term "home occupation" shall mean a dwelling unit located within a residential portion of a building that is used in part for the purpose of engaging in an occupation authorized by law to be practiced at such location in addition to residential use;

2. The term "medical office/group medical center" shall mean an office located within a residential portion of a building that is used for the purpose of practicing a medical profession authorized by law to be practiced at such location;

3. The term "other residential office" shall mean an office, other than a medical office/group medical center, located within a residential portion of a building that is authorized by law to be used as an office by virtue of such use having been established prior to December 15, 1961; and

4. The term "designated recyclable materials" shall be as defined in rules of the commissioner adopted pursuant to section 16-305 of this code.

b. The commissioner is authorized to collect the following annual fees for the collection and disposal of solid waste generated by home occupations, medical offices/group medical centers, and other residential offices, located within buildings which receive department collection and disposal service:

Average Total Number of 20 Gallon Bags Generated Per Week, Including Designated Recyclable Materials	Annual Collection and Disposal Fee

Not more than 5	$303.00
6-10	$563.00
11-15	$823.00
16-20	$1,083.00

§ 16-114.2 Stationary on-street containers.

a. *Definitions.* As used in this section, the following terms have the following meanings:

Exempt building. The term "exempt building" means: (i) any building owned by a limited-profit housing company organized pursuant to article 2 of the private housing finance law; (ii) any building owned by a housing development fund company organized pursuant to article 11 of the private housing finance law; (iii) any building in which 50 percent or more of dwelling units are required by law or by an agreement with a governmental entity to be regulated in accordance with the emergency tenant protection act of 1974, the rent stabilization law of 1969, or the local emergency housing rent control act of 1962; (iv) any building in which all dwelling units are required pursuant to a federal, state, or local law, rule, or program to be affordable for an extremely low income household as defined in section 26-2101, a very low income household as defined in section 26-2101, a low income household as defined in 26-2101, a moderate income household as defined in section 26-2101, or a middle income household as defined in section 26-2101 and that operates pursuant to an agreement administered by a governmental entity; and (v) any other building or class of buildings that the department determines by rule is qualified for a waiver from any annual fee established by department rules adopted pursuant to paragraph 5 of subdivision c of this section.

Large residential building. The term "large residential building" means a residential building containing no less than 31 dwelling units, other than such a building for which the department collects refuse from a loading dock or other location other than a street or curb.

Medium residential building. The term "medium residential building" means a residential building containing no less than 10 and no more than 30 dwelling units, other than such a building for which the department collects refuse from a loading dock or other location other than a street or curb.

Organic waste. The term "organic waste" has the same meaning as set forth in section 16-303.

Residential building. The term "residential building" means a building containing not less than 1 dwelling unit that receives collection and disposal service from the department.

Residential refuse. The term "residential refuse" means any solid waste or organic waste generated by a residential building.

Solid waste. The term "solid waste" has the same meaning as set forth in section 16-303.

Stationary on-street container. The term "stationary on-street container" means a container for the storage and collection of residential refuse that the department places or installs in the public right-of-way.

b. The department shall not require any residential building to set out residential refuse in a stationary on-street container, except pursuant to rules that meet the requirements of subdivision c of this section.

c. The department may adopt rules requiring a residential building to set out all residential refuse, or certain forms of residential refuse, in a stationary on-street container, provided that such rules:

1. Shall not require any residential building other than a medium residential building or a large residential building to set out residential refuse in a stationary on-street container, except where 2 or more residential buildings set out residential refuse in the same such container and such residential building is not a building for which the department collects refuse from a loading dock or other location other than a street or curb;

2. Shall require any large residential building or medium residential building that sets out residential refuse in a stationary on-street container to distribute to the employees of such building training materials provided by the department about how to set out such refuse in such container, and to provide any such employees who are responsible for setting out such refuse in such container any personal protective equipment reasonably necessary for such purpose, as determined by the department by rule;

3. May designate any area of the city in which such rules shall be in effect, provided that such rules shall set forth the date on which a residential building located within any such area shall begin setting out residential refuse in a stationary on-street container;

4. Shall establish civil penalties for violations of such rules not to exceed $100 for a first violation, $200 for a second violation committed within a 12-month period, and $300 for a third or subsequent violation committed within a 12-month period, provided that any such penalty may be recovered in a civil action brought in the name of the commissioner or in a proceeding before the environmental control board; and

5. Notwithstanding any other provision of this chapter to the contrary, may establish an annual fee of no more than $55 per dwelling unit, to be paid by the owner of any large residential building or medium residential building to which the department has provided a stationary on-street container, for costs related to the acquisition, shipping, assembly, installation, repair, cleaning, and maintenance of such stationary on-street container, provided that:

(a) The department shall not require an owner of an exempt building to pay such fee;

(b) The department of finance shall send, in the same manner by which such department sends to owners of real property a statement of account pursuant to section 11-129, a notice of such fee that sets forth the amount due and states that any such fee shall be due and payable on the date provided on such notice;

(c) There shall be filed in the office of the department of finance a record of any such fee for any tax lot of any such large residential building or medium residential building that is not paid by the date when such fee is due and payable. Such a record for any such tax lot shall be made accessible to the public during business hours. Such record may be made and maintained electronically. Such record shall be deemed to be entered on the date that such record is entered electronically on the records of the department of finance. Such entry shall constitute notice to all parties;

(d) If such fee is not paid by the date when such fee is due and payable as provided on such notice, it shall be the duty of the department of finance to receive interest thereon, to be calculated to the date of payment from the due and payable date;

(e) The rate of interest applied to such unpaid fee shall be equal to the rate applicable to the tax lot for nonpayment of taxes on real property pursuant to subdivision (e) of section 11-224.1 and shall be compounded daily;

(f) Such fee and the interest thereon shall continue to be, until paid, a lien on the tax lot and such lien shall have a priority over all other liens and encumbrances on the tax lot except for the lien of taxes and assessments and shall not be enforced against a subsequent purchaser in good faith or mortgagee in good faith unless the requirements of subparagraph (c) of this paragraph are satisfied. Such lien may be satisfied in accordance with the provisions of section 1354 of the real property actions and proceedings law;

(g) Nothing in this paragraph shall be construed as authorizing such lien to be treated as a tax lien within the meaning of section 11-319 or section 11-401 or as authorizing such lien to be sold, enforced, or foreclosed in the manner provided in chapter 3 or chapter 4 of title 11 of this code; and

(h) The department shall establish a process for a property owner to challenge the imposition or the amount of such fee or any determination that a residential building is not an exempt building, and a process for the department to notify the department of finance regarding the outcome of any such challenge.

d. Where the department adopts rules as described in subdivision c of this section, the department and the department of transportation shall enter into a memorandum of understanding to govern the placement or installation of any stationary on-street container in the public right of way pursuant to such rules.

e. Where the department adopts rules requiring a residential building to set out organic waste in a stationary on-street container in accordance with this section, such rules shall take effect no earlier than the date that any rules requiring a residential building to set out residential refuse other than organic waste in a stationary on-street container, adopted by the department pursuant to subdivision c of this section, take effect.

(L.L. 2025/180, 12/12/2025, eff. 12/12/2025)

§ 16-115 Sale of ashes by commissioner.

Ashes collected by the department may be sold by the commissioner at rates fixed by the board of estimate.

§ 16-116 Removal of commercial waste; posting of sign, registration number.

a. 1. Every owner, lessee or person in control of a commercial establishment shall provide for the removal of waste by a business licensed by the New York city business integrity commission as required by subdivision a of section 16-505 of this code or register and obtain a registration number from the New York city business integrity commission as required by subdivision b of section 16-505 of this code to remove its own waste except as provided in subdivision c of this section, however nothing contained herein shall preclude the commissioner from providing for the removal of waste from any commercial establishment pursuant to the authority vested in the commissioner by section seven hundred fifty-three of the charter.

2. No later than the applicable final implementation date set forth in the rules of the department pursuant to subdivision e of section 16-1002, each owner, lessee or person in control of a commercial establishment shall contract with an awardee selected by the department for the zone in which such establishment is located for the removal of commercial waste only by a designated carter pursuant to the agreement entered into between such awardee and the department pursuant to title 16-B, as such terms are defined in section 16-1000, in accordance with the provisions of such title and any rules promulgated pursuant thereto, except as otherwise provided by such title, provided however, that an owner, lessee or person in control of a commercial establishment may contract for the removal of containerized commercial waste, as such term is defined in section 16-1000, with either an awardee selected for such zone or with an awardee selected for the removal of containerized commercial waste citywide pursuant to title 16-B, in accordance with the provisions of such title and any rules promulgated pursuant thereto.

b. Every owner, lessee or person in control of a commercial establishment shall post a sign which states clearly and legibly the trade or business name, address, telephone number and the day and time of the pickup of the trade waste removal business presently serving the establishment, or if the commercial establishment removes its own waste, a registration number issued by the New York city trade waste commission shall be posted. Such sign or registration number shall be prominently displayed by affixing it to a window near the principal entrance to the commercial establishment so as to be easily visible from outside the building. If this is not possible, such sign or permit shall be prominently displayed inside the commercial establishment near the principal entrance to the premises.

c. This section shall not apply to (i) unimproved or vacant property or premises generating infrequent waste or insignificant amounts of waste; and (ii) home occupations, medical offices/group medical centers, and other residential offices, which receive department collection and disposal service pursuant to section 16-114.1 of this code. The commissioner shall have the authority to determine what constitutes infrequent waste or insignificant amounts of waste in specific cases.

d. (i) Except as provided in paragraph (ii) of this subdivision, violation of any of the provisions of this section or any rules promulgated pursuant thereto shall be punishable by a civil penalty of not less than fifty nor more than one hundred dollars, provided that a violation of subdivision (b) of this section or any rules promulgated pursuant thereto by any owner, lessee or person in control of a commercial establishment shall be punishable by a civil penalty of fifty dollars.

(ii) A commercial establishment required by subdivision b of section 16-505 of this code to register with the New York city trade waste commission shall be subject to a penalty for the violation of such subdivision or any rule pertaining thereto as provided in subdivision c of section 16-515 of this code. Such penalty may be recoverable in the manner provided therein or may be returnable in a civil action brought in the name of the commissioner before the environmental control board which shall impose a penalty not to exceed one thousand dollars.

(Am. L.L. 2019/199, 11/20/2019, eff. 11/20/2019; Am. L.L. 2021/080, 7/18/2021, eff. 11/15/2021)

Editor's note: For related unconsolidated provisions, see Appendix A at L.L. 1996/042, L.L. 2013/153, L.L. 2019/199, and L.L. 2021/080.

§ 16-117 Rules and regulations governing conveyance of rubbish, waste or offensive material through the streets.

The commissioner shall have power to adopt rules and regulations:

1. Controlling persons and their servants, agents and employees and the vehicles of each engaged in removing, disposing of, conveying or transporting upon the streets, public places or bridges, or over the ferries in the city, manure, swill, ashes, street sweepings, bones, garbage, night soil, offal, fat, hides, hoofs or entrails, or other refuse parts of slaughtered animals, refuse, rubbish, bodies of dead animals, or any other offensive or noxious material, paper stock, or trade waste;

2. Rules and regulations adopted by the commissioner pursuant to this section shall be submitted to the board of estimate and, when approved by such board, shall be filed with the city clerk and published in like manner as prescribed by section eleven hundred five of the charter and shall be enforced in the same manner and to the same extent as local laws.

§ 16-117.1 Transport, storage and disposal of waste containing asbestos.

(a) No person shall transport, store or dispose of waste containing asbestos or cause or permit any person to transport, store or dispose of such waste, except as in accordance with the provisions of this section.

(b) Waste containing asbestos shall not be presented for transport, storage or disposal unless at the site of generation such waste is:

(1) wet down in a manner sufficient to prevent all visible emissions of asbestos dust into the air;

(2) sealed while wet in leak-tight containers which shall bear either:

(i) a warning label which states: "CAUTION Contains Asbestos – Avoid Opening or Breaking Container Breathing Asbestos is Hazardous to Your

Health", or

(ii) such other warning label as may be authorized by federal law or regulation; and

(3) quantitatively documented on a form approved by the commissioner, expressed by either volume, weight or container (bag);

(4) kept separate from any other waste.

(c) Waste which contains asbestos shall not be stored unless prior authorization, in such form and manner as the commissioner may prescribe by regulation, is received from the department.

(d) Whenever waste containing asbestos is stored prior to disposal such waste shall be inspected not less than once in every twenty-four hour period so as to ensure that there are no visible emissions of asbestos dust into the air. If such inspection reveals visible emissions of asbestos dust into the air, the waste shall be wet down and repackaged by placing the existing container into a leak-tight container so as to prevent any further emissions into the air.

(e) (1) Waste containing asbestos shall be disposed of in the City only at sites approved by the commissioner;

(2) in cases of asbestos disposed of in City approved disposal sites, the Department of Sanitation shall indicate on the appropriate form, the quantity of asbestos received, expressed either by volume, weight or container (bag). A copy of this form shall be forwarded to the Department of Environmental Protection.

(f) The commissioner shall have the authority to adopt rules and regulations to effectuate the purposes of this section.

(g) (1) Any violation of this section or of any rule or regulation adopted pursuant to this section shall constitute an offense punishable by a fine of not less than five hundred dollars and not more than twenty-five thousand dollars, or by imprisonment not to exceed one year, or by both such fine and imprisonment.

(2) In addition to any other criminal or civil penalty authorized by law, any violation of this section or any rule or regulation adopted pursuant to this section shall be punishable by a civil penalty of not less than five hundred dollars and not more than twenty-five thousand dollars. Such penalty may be recovered in a civil action brought in the name of the commissioner or in a proceeding before the environmental control board.

§ 16-118 Littering prohibited.

1. (a) No person shall litter, sweep, throw or cast, or direct, suffer or permit any servant, agent, employee, or other person under his or her control, to litter, sweep, throw or cast any ashes, garbage, paper, dust or other rubbish and refuse of any kind whatsoever, in or upon any street or public place, vacant lot, air shaft, areaway, backyard court, park, or alley.

(b) No person shall spit upon a sidewalk of a street or public place, or on a floor, wall or stairway of any public or private building or premises used in common by the public, or in or on any public transportation facility.

2. (a) Every owner, lessee, tenant, occupant or person in charge of any building or premises shall keep and cause to be kept the sidewalk, flagging and curbstone abutting said building or premises free from obstruction and nuisances of every kind, and shall keep said sidewalks, flagging, curbstones, and air shafts, areaways, backyards, courts and alleys free from garbage, refuse, rubbish, litter, debris and other offensive material. Such persons shall also remove garbage, refuse, rubbish, litter, debris and other offensive material between the curbstone abutting the building or premises and the roadway area extending one and one-half feet from the curbstone into the street on which the building or premises front. Such persons shall not, however, be responsible for cleaning the garbage, refuse, rubbish, litter, debris and other offensive material which accumulates at catch basins located within the one and one-half foot distance from the curbstone into the street.

(b) Every owner, lessee, tenant or person in charge of any vacant lot shall keep and cause to be kept the sidewalk, flagging and curbstone abutting said vacant lot free from obstruction and nuisances of every kind, and shall keep said sidewalks, flagging and curbstones free from garbage, refuse, rubbish, litter, debris and other offensive material. Every owner, lessee, tenant or person in charge of any vacant lot shall keep and cause to be kept said vacant lot free from garbage, refuse, rubbish, litter, debris and other offensive material. Such persons shall also remove garbage, refuse, rubbish, litter, debris and other offensive material between the curbstone abutting the vacant lot and the roadway area extending one and one-half feet from the curbstone into the street on which the vacant lot fronts. Such persons shall not, however, be responsible for cleaning the garbage, refuse, rubbish, litter, debris and other offensive material which accumulates at catch basins located within the one and one-half foot distance from the curbstone into the street.

3. No lime, ashes, coal, dry sand, hair, waste paper, feathers, or other substance that is in a similar manner liable to be blown by the wind, shall be sieved, agitated, or exposed, nor shall any mat, carpet, or cloth be shaken or beaten, nor shall any cloth, yarn, garment, material or substance be scoured or cleaned, nor shall any rags, damaged merchandise, barrels, boxes, or broken bales of merchandise or goods be placed, kept, or exposed in any place where they or particles therefrom will pass into any street or public place, or into any occupied premises, nor shall any usual or any reasonable precautions be omitted by any person to prevent fragments or any substances from falling to the detriment or peril of life or health, or dust or light material flying into any street, place, or building, from any building or erection, while the same is being altered, repaired or demolished, or otherwise. In demolishing any building or part thereof, the material to be removed shall be properly wet in order to lay dust incident to its removal.

4. No one, being the owner, or in charge or in control of any vehicle, or of any receptacle, shall litter, drop or spill, or permit to be littered, dropped or spilled any dirt, sand, gravel, clay, loam, stone or building rubbish, hay, straw, oats, sawdust, shavings or other light materials of any sort, or manufacturing, trade or household waste, refuse, rubbish of any sort, or ashes, manure, garbage, or other organic refuse or other offensive matter, in or upon any street or public place.

5. [Repealed.]

6. No swill, brine, offensive animal matter, noxious liquid, or other filthy matter of any kind, shall be allowed by any person to fall upon or run into any street, or public place, or be taken to or put therein.

7. No person shall prevent, or otherwise interfere with, the sweeping or cleaning of any street, the removal of snow or ice from any street or the collection or removal of any solid waste or recyclable material from any street, by any employee of the department.

8. The violation of any provision of this section shall constitute an offense punishable by a fine of not less than fifty dollars nor more than two hundred fifty dollars, or by imprisonment not to exceed ten days, or both; provided that the violation of subdivision 1 of this section, or the violation of subdivision 6 of this section by means of the act of public urination, shall constitute an offense punishable only by a fine of not less than fifty dollars nor more than two hundred fifty dollars, or by imprisonment not to exceed one day.

9. Any person violating the provisions of this section shall be liable for a civil penalty in the following amounts, provided that for the purposes of this subdivision, the term "first violation" means any number of violations issued for a single incident:

a. (1) not less than $50 and not more than $250 for a first violation, except that the civil penalty shall be not less than $250 and not more than $350 for a second violation of subdivision 4 or 6 of this section within any 12 month period, and not less than $350 and not more than $450 for a third or subsequent violation of subdivision 4 or 6 of this section within any 12 month period;

(2) notwithstanding subparagraph (1) of paragraph a of this subdivision, $50 for a first violation of paragraph (a) of subdivision 2 or of subdivision 3 of this section, or of any rules promulgated pursuant thereto, $100 for a second violation of such paragraph or subdivision or of any rules promulgated pursuant thereto within any 12 month period, and $100 for a third or subsequent violation of such paragraph or subdivision or of any rules promulgated pursuant thereto within any 12 month period; and

(3) notwithstanding subparagraphs (1) and (2) of paragraph a of this subdivision, where the owner, occupant, lessee, tenant, or person in charge of any commercial, manufacturing, or industrial building, including any mixed-use building, but excluding any solely residential building, has violated the provisions of paragraph (a) of subdivision 2 of this section, or of any rules promulgated thereto, such owner, occupant, lessee, tenant, or person in charge shall be liable for a civil penalty of $50 for the first violation, $300 for the second violation committed on a different day within any 12 month period, and $500 for the third and each subsequent violation committed on a different day within any 12 month period;

b. notwithstanding paragraph a of this subdivision, for any natural person violating subdivision 6 of this section by means of the act of public urination:

(1) 75 dollars for a first violation, and

(2) not less than 250 and not more than 350 dollars for any second violation within any 12 month period, and

(3) not less than 350 and not more than 450 dollars for any third violation within any 12 month period;

c. notwithstanding paragraph a of this subdivision, for any natural person violating subdivision 1 of this section:

(1) 75 dollars for a first violation, and

(2) 300 dollars for any second violation within any 12 month period, and

(3) 400 dollars for any third violation within any 12 month period; and

d. notwithstanding paragraph a of this subdivision, for any natural person violating subdivision 4 of this section:

(1) 200 dollars for a first violation; and

(2) 350 dollars for any second violation within any 12 month period; and

(3) 450 dollars for any third violation within any 12 month period.

10. In the instance where a notice of violation is issued for breach of the provisions of this section and sets forth thereon civil penalties only, such process shall be returnable to the office of administrative trials and hearings pursuant to section 1049-a of the charter.

11. In the event that a violator fails to answer such notice of violation within the time provided therefor by the rules and regulations of the environmental control board, a tribunal of the office of administrative trials and hearings, pursuant to section 1049-a of the charter, he or she shall become liable for additional penalties. The additional penalties shall not exceed four hundred fifty dollars for each violation, provided that such penalties imposed for a violation of this section for the act of public urination shall not exceed 150 percent of the penalties enumerated in paragraph b of subdivision 9 of this section, and further provided that such penalties imposed for violations of subdivision 1 of this section shall not exceed 150 percent of the penalties enumerated in paragraph c of subdivision 9 of this section.

(Am. L.L. 2016/075, 6/13/2016, eff. 8/12/2016; Am. L.L. 2018/131, 7/29/2018, eff. 11/26/2018; Am. L.L. 2018/137, 7/29/2018, eff. 11/26/2018; Am. L.L. 2021/080, 7/18/2021, eff. 11/15/2021; Am. L.L. 2024/067, 6/22/2024, eff. 12/19/2024)

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1995/076, L.L. 2007/050, L.L. 2013/056, L.L. 2016/075, L.L. 2021/080, and L.L. 2024/067.

§ 16-118.1 Citywide routing system.

a. The department shall implement a citywide routing system for residential premises for the enforcement of subdivision two of section 16-118 of this code, as such subdivision relates to the cleaning of sidewalks, flagging, curbstones, airshafts, backyards, courts, alleys and roadway areas by owners, lessees, tenants, occupants or persons in charge of any such premises, and for commercial premises for the enforcement of such subdivision as such subdivision relates to cleaning of sidewalks, flagging, curbstones and roadway areas by owners, lessees, tenants, occupants or persons in charge of such premises. The citywide enforcement routing system shall limit the issuance of notices of violation, appearance tickets or summonses within any sub-district of a local service delivery district to predetermined periods of a total of no more than two hours each day, provided that each such predetermined period shall be one hour. The department shall establish a citywide schedule of periods for issuing notices of violation, appearance tickets or summonses for commercial premises in each district and shall give written notice to the owners, lessees, tenants, occupants or persons in charge of such premises in each district of the periods for the district in which their premises are located by the use of flyers, community meetings or such other techniques as the commissioner reasonably determines to be useful. The two one-hour predetermined periods for issuing notices of violation, appearance tickets or summonses for residential premises shall be from 8:00 a.m. until 9:00 a.m. and from 6:00 p.m. until 7:00 p.m.

b. Notwithstanding the provisions of subdivision a of this section, the commissioner may provide an additional predetermined period of one hour per day during which notices of violation, appearance tickets or summonses may be issued in any sub-district within a local service delivery district upon the commissioner's determination that the total of two hours otherwise permitted by this section is not sufficient to maintain the sidewalks, flagging, curbstones and roadways in such sub-districts in an adequately clean condition. Such determination shall be based upon a finding that there has been a decline in the average street cleanliness ratings compiled by the mayor's office of operations for such district for the most recent three-month period as compared to the average street cleanliness ratings compiled by the mayor's office of operations for the same three-month period in fiscal year nineteen hundred ninety. Notice of any increase in the number of hours during which notices of violation, appearance tickets or summonses can be issued or of any change in such hours shall be given by letter to the community board, the owners, lessees, tenants, occupants or persons in charge of any premises in the affected sub-districts within a local service delivery district and every council member representing the local service delivery district no less than forty-five days prior to the implementation of such increase or change. Any additional notice may be given by use of letters, flyers, community meetings or such other techniques as the commissioner reasonably determines to be useful. Written notice to a council member shall be sent to the council member's district office.

c. For the purpose of this section, the following terms shall have the following meanings: (i) "local service delivery district" means a local service delivery district as described in chapter sixty-nine of the charter of the city of New York; (ii) "sub-district" means a section within a local service delivery district as described in chapter sixty-nine of the charter of the city of New York; and (iii) "commercial premises" means any premises abutting the sidewalk at which goods or services are sold directly to consumers or other businesses, and may, in appropriate instances to be determined by the commissioner, also include any other class of real property that is used for the conduct of any business, trade or profession; and (iv) "residential premises" means those portions of premises used predominantly for residential purposes, other than hotels, that abut the sidewalk and do not constitute commercial premises.

d. Within fifteen months after the effective date of this section, the commissioner shall submit to the mayor and the council a report on the results of the citywide enforcement routing system for the twelve month period commencing on the first day of the first full month after the effective date of this section.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1990/031.

§ 16-119 Dumping prohibited.

a. It shall be unlawful for any person, his or her agent, employee or any person under his or her control to suffer or permit any amount of dirt, sand, gravel, clay, loam, stone, rocks, rubble, building rubbish, sawdust, shavings or trade or household waste, refuse, ashes, manure, garbage, rubbish or debris of any sort or any other organic or inorganic material or thing or other offensive matter being transported in a dump truck or other vehicle to be dumped, deposited or otherwise disposed of in or upon any sidewalk, street, lot, park, public place, wharf, pier, dock, bulkhead, slip, navigable waterway or other area whether publicly or privately owned.

b. Any person who violates the provisions of this section while engaged in commercial activities shall be liable to arrest and upon conviction thereof shall be deemed guilty of a misdemeanor and shall be punished by a fine of $4,000 for the first offense and $9,000 for any subsequent offense or by imprisonment not to exceed 90 days or by both such fine and imprisonment.

c. (1) Any person who violates the provisions of subdivision a of this section shall also be liable for a civil penalty of $4,000 for the first offense, $9,000 for the second offense within any eighteen-month period and $18,000 for each subsequent offense within any eighteen-month period. In addition, every owner of a dump truck or other vehicle shall be liable for a civil penalty of $4,000 for the first offense, $9,000 for the second offense within any eighteen-month period and $18,000 for each subsequent offense within any eighteen-month period of unlawful dumping described in subdivision a of this section by any person using or operating the dump truck or other vehicle, in the business of such owner or otherwise, with the permission, express or implied, of such owner. It shall not be a defense for any owner of a dump truck or other vehicle that the person using or operating the dump truck or other vehicle in violation of this section is a member of the owner's immediate family, including, but not limited to, spouse, domestic partner, sibling, child, grandchild, parent or grandparent.

(2) Any owner, owner-operator or operator who is found in violation of this section in a proceeding before the environmental control board and who shall fail to pay the civil penalty imposed by such environmental control board shall be subject to the suspension of his or her driver's license, privilege to operate or vehicle registration or renewal thereof imposed pursuant to section twelve hundred twenty-a of the vehicle and traffic law, in addition to any other civil and criminal fines and penalties set forth in this section.

(3) As used in this subdivision, the terms "owner", "owner-operator" and "operator" shall have the meaning set forth in subdivision one of section twelve hundred twenty-a of the vehicle and traffic law.

(4) The provisions of this section may also be enforced by the commissioner of small business services and the commissioner of environmental protection with respect to wharfs, piers, docks, bulkheads and slips located on waterfront property, and navigable waterways.

(5) If the department, the department of small business services or the department of environmental protection has established that material transported in a dump truck or other vehicle has been dumped, deposited or otherwise disposed of in violation of subdivision a of this section, there shall be a rebuttable presumption that the person whose name, or other identifying information, appears on any such material has violated such subdivision if the department, the department of small business services or the department of environmental protection establishes that such person owns or has control of (i) such dump truck or other vehicle or (ii) any dump truck.

d. In the instance where the notice of violation, appearance ticket or summons is issued for a breach of the provisions of subdivision a of this section and sets forth thereon civil penalties only, such process shall be returnable to the environmental control board, which board shall have the power to impose the civil penalties hereinabove provided in subdivision c of this section, provided further, that, notwithstanding any other provision of law, the environmental control board shall have such powers and duties as are set forth under section twelve hundred twenty-a of the vehicle and traffic law.

e. (1) Any dump truck or other vehicle that has been used or is being used to violate the provisions of this section shall be impounded by the department and shall not be released until either all removal charges and storage fees and the applicable fine have been paid or a bond has been posted in an amount satisfactory to the commissioner or as otherwise provided in paragraph (2) of this subdivision. The commissioner shall have the power to establish regulations concerning the impoundment and release of vehicles and the payment of removal charges and storage fees for such vehicles, including the amounts and rates thereof.

(2) In addition to any other penalties provided in this section, the interest of an owner as defined in subdivision c of this section in any vehicle impounded pursuant to paragraph (1) of this subdivision shall be subject to forfeiture upon notice and judicial determination thereof if such owner (i) has been convicted of or found liable for a violation of this section in a civil or criminal proceeding or in a proceeding before the environmental control board two or more times, both of which violations were committed within an eighteen month period or (ii) has been convicted of or found liable for a violation of this section in a civil or criminal proceeding or in a proceeding before the environmental control board if the material unlawfully dumped is a material identified as a hazardous waste or an acute hazardous waste in regulations promulgated pursuant to section 27-0903 of the environmental conservation law.

(3) Except as hereinafter provided, the city agency having custody of a vehicle, after judicial determination of forfeiture, shall no sooner than thirty days after such determination upon a notice of at least five days, sell such forfeited vehicle at public sale. Any person, other than an owner whose interest is forfeited pursuant to this section, who establishes a right of ownership in a vehicle, including a part ownership or security interest, shall be entitled to delivery of the vehicle if such person:

(i) redeems the ownership interest which was subject to forfeiture by payment to the city of the value thereof; and

(ii) pays the reasonable expenses of the safekeeping of the vehicle between the time of seizure and such redemption; and

(iii) asserts a claim within thirty days after judicial determination of forfeiture. Notwithstanding the foregoing provisions establishment of a claim shall not entitle such person to delivery of the vehicle if the city establishes that the unlawful dumping for which the vehicle was seized was expressly or impliedly permitted by such person.

f. Rewards.

(1) Where a notice of violation, appearance ticket or summons is issued for a violation of subdivision a of this section based upon a sworn statement by one or more individuals and where the commissioner determines, in the exercise of his or her discretion, that such sworn statement, either alone or in conjunction with testimony at a civil or criminal proceeding or in a proceeding before the environmental control board, results in the conviction of or the imposition of a civil penalty upon any person for a violation of subdivision a of this section, the commissioner shall offer as a reward to such individual or individuals an amount that, in the aggregate, is equal to:

(i) fifty percent of any fine or civil penalty collected; or

(ii) five hundred dollars when a conviction is obtained, but no fine or civil penalty is imposed.

(2) Where a notice of violation, appearance ticket or summons is issued for a violation of subdivision a of this section based upon information furnished by an individual or individuals and where the commissioner determines, in the exercise of his or her discretion, that such information, in conjunction with enforcement activity conducted by the department or another governmental entity, results in the conviction of or the imposition of a civil penalty upon any person for a violation of subdivision a of this section, the commissioner shall offer as a reward to such individual or individuals an amount that, in the aggregate, is:

(i) up to fifty percent of any fine or civil penalty collected; or

(ii) up to five hundred dollars when a conviction is obtained, but no fine or civil penalty is imposed. In determining the amount of the reward, the commissioner shall consider factors that include, but are not limited to: (a) the quantity and type of the material dumped, deposited or otherwise disposed of; (b) the specificity of the information provided, including, but not limited to, the license plate number, make or model or other description of the dump truck or other vehicle alleged to have been used and the location, date or time of the alleged violation; (c) whether the information provided by the individual or individuals identified one or more violations of subdivision a of this section; and (d) whether the department has knowledge that violations of subdivision a of this section have previously occurred at that location.

(3) No peace officer, employee of the department or of the environmental control board, or employee of any governmental entity that, in conjunction with the department, conducts enforcement activity relating to a violation of subdivision a of this section shall be entitled to obtain the benefit of any such reward or obtain the benefit of such reward when acting in the discharge of his or her official duties.

g. In addition to the foregoing penalties the offender shall be required to clear and clean the area upon which the offender dumped unlawfully within ten days after conviction thereof. In the event the offender fails to clear and clean the area within such time such clearing and cleaning may be done by the department or under the direction of the department by a private contractor and the cost of same shall be billed to the offender. In the event that the department has cleaned or cleared the area, or has caused the area to be cleaned or cleared by a private contractor prior to the offender's conviction, the offender shall be responsible for the cost of such clearing and or cleaning. Payment by such offender when required by this subdivision shall be made within ten days of demand by the department.

h. The commissioner shall post a sign in any area where the commissioner deems appropriate because of instances of illegal dumping. Such sign shall state the penalties for illegal dumping and the reward provisions therein.

(Am. L.L. 2018/134, 7/29/2018, eff. 7/29/2018; Am. L.L. 2018/135, 7/29/2018, eff. 9/27/2018.

§ 16-120 Receptacles for the removal of waste material.

a. 1. The owner, lessee, agent, occupant or other person who manages or controls a building or dwelling shall provide and maintain in accordance with this section separate receptacles for the deposit of incinerator residue and ashes; refuse, and liquid waste; provided, however, that an owner, lessee, agent, occupant or other person who manages or controls a residential building that sets out residential refuse in a stationary on-street container pursuant to rules promulgated pursuant to section 16-114.2 of this chapter shall provide and maintain such separate receptacles in accordance with such rules and, where any such rule is inconsistent with subdivision a, b, c or d of this section, comply with such rule. The receptacles shall be provided for the exclusive use of each building or dwelling and shall be of sufficient size and number to contain the wastes accumulated in such building or dwelling during a period of 72 hours. The receptacles shall be made of metal or other material of a grade and type acceptable to the department, the department of health and mental hygiene and the department of housing preservation and development. Receptacles used for liquid waste shall be constructed so as to hold their contents without leakage. Metal containers shall be provided with tight fitting metal covers.

2. (a) Where the conditions precedent and requirements set forth in subparagraphs (b) and (c) of this paragraph are satisfied and apply, respectively, the receptacles used to meet the requirements set forth in paragraph 1 of this subdivision shall be of a material or design approved by the department, department of health and mental hygiene and department of housing preservation and development to minimize rodent access and harborage.

(b) (1) The requirements set forth in subparagraph (a) of this paragraph apply to a building or dwelling to which two or more notices of violation have been issued pursuant to section 151.02 of the New York city health code within a 12-month period, provided that such a notice of violation that has been dismissed by the office of administrative trials and hearings shall not be counted in determining whether such requirements apply, and such a notice of violation for which an appeal is pending at such office shall not be counted unless and until such office has upheld such notice of violation.

(2) The requirements set forth in subparagraph (a) of this paragraph begin to apply on the date that the department notifies the owner of record of such building or dwelling that any combination of the following has occurred that amounts to two violations: (i) the owner has admitted the violation, (ii) the owner has defaulted on the violation, and the time to reopen the case has expired, or (iii) the office of administrative trials and hearings has upheld the notice of violation.

(3) The requirements set forth in subparagraph (a) of this paragraph continue to apply until two years have elapsed following such notification by the department, provided that the occurrence of a new violation that may be counted in accordance with clause (1) of this subparagraph extends the duration of applicability until two years have elapsed following the date of the new violation as indicated in the corresponding new notice of violation.

(c) (1) The requirements set forth in subparagraph (a) of this paragraph apply to a building or dwelling to which two or more notices of violation relating to the presence of rats have been issued pursuant to section 27-2017.4 of the housing maintenance code, provided that a violation that the owner of record of such building or dwelling has certified as corrected within the correction period indicated on the notice of violation shall not be counted in determining whether such requirements apply unless the department of housing preservation and development has identified such certification as false.

(2) The requirements set forth in subparagraph (a) of this paragraph begin to apply on the date that the department notifies the owner of record of such building or dwelling that the two violations triggering such requirements have occurred.

(3) The requirements set forth in subparagraph (a) of this paragraph continue to apply until two years have elapsed following such notification by the department, provided that the occurrence of a new violation that may be counted in accordance with clause (1) of this subparagraph extends the duration of applicability of such requirements until two years have elapsed following the date of such new violation as indicated in the corresponding new notice of violation.

(d) The department may waive the requirements set forth in subparagraph (a) of this paragraph for a building or dwelling if the owner of record or managing agent of such building or dwelling demonstrates to the satisfaction of the department that compliance with such provisions would (i) create an undue burden on such owner of record or managing agent or (ii) create a public safety hazard because the sidewalk on which a receptacle is placed would be substantially obstructed by such receptacle during the time it is set out for purposes of removal of waste material. The department shall make such waiver in writing and share such waiver with the owner of record or managing agent of such building or dwelling, the relevant community board, the department of health and mental hygiene and the department of housing preservation and development.

b. Ashes and incinerators residue, refuse and liquid wastes shall be separated and placed into separate receptacles. No receptacle when filled shall weigh more than one hundred pounds.

c. 1. Incinerator residue, ashes, refuse and liquid waste shall be stored in the building or dwelling or at the rear of the building or dwelling as may be required by the department of health and mental hygiene or the department of housing preservation and development until time for removal and kept in tightly covered metal receptacles or containers made of other materials of a type and grade acceptable to the department, the department of health and mental hygiene, and the department of housing preservation and development. After the contents have been removed by the department or other collection agency any receptacles remaining shall be removed from the front of the building or dwelling before 9:00 p.m. on the day of collection, or if such collection occurs after 4:00 p.m., then before 9:00 a.m. on the day following collection. The receptacles shall at all times be kept covered or closed and kept in a manner satisfactory to the department, the department of health and mental hygiene, and in the case of residential premises, the department of housing preservation and development. No receptacles, refuse, incinerator residue or ashes, or liquid waste shall be kept so as to create a nuisance. Yard sweepings, hedge cuttings, grass, leaves, earth, stone or bricks shall not be mixed with household wastes.

2. Notwithstanding paragraph 1 of this subdivision, the department may set by rule requirements for the set-out of solid waste or recyclable material for collection by the department. Such requirements shall prioritize:

(a) Minimizing rodent harborage associated with such waste or material set-out; and

(b) Minimizing the amount of time that such waste or material is placed at the curb prior to collection by the department.

3. Notwithstanding paragraphs 1 and 2 of this subdivision, if the department sets by rule requirements for the set-out of solid waste or recyclable material pursuant to paragraph 2 of this subdivision, the department shall set by rule alternative requirements for the set-out of solid waste or recyclable material for collection by the department for multiple dwellings containing nine or more dwelling units, in furtherance of the goals identified in subparagraphs (a) and (b) of paragraph 2 of this subdivision, provided that any such requirements allow such multiple dwellings to opt in to such requirements and provided further that any such requirements allow for solid waste or recyclable material to be set out for collection by the department no more than four hours prior to the start of the scheduled collection shift. Such four hour time shall not apply to solid waste or recyclable material that is stored in a receptacle that is kept covered or closed in a manner to prevent rodent harborage and in a manner satisfactory to the department, the department of health and mental hygiene and the department of housing preservation and development. Any multiple dwelling that does not opt in to such requirements, or that opts out of such requirements, shall be subject to the requirements set by rule pursuant to paragraph 2 of this subdivision.

4. Notwithstanding any provision of this subdivision or any rule of the department relating to collection to the contrary, the department shall not issue a notice of violation, appearance ticket or summons to any owner, lessee, tenant or occupant of a residential building or dwelling, nor to a person who manages or controls such a building or dwelling, for a violation of this subdivision, or any rule promulgated by the department, related exclusively to the time at which solid waste or recyclable material is set out for collection, provided that such set out occurs after 3:00 p.m. on Friday, within an area of a community district that has Saturday collection of solid waste or recyclable material, and the associated community board has adopted a resolution requesting early Friday set out of solid waste or recyclable material. The department shall implement any community board requests within thirty days of a resolution being adopted. Nothing in this paragraph shall otherwise be construed to limit the ability of the department to promulgate rules regarding the manner in which solid waste and recycling must be set out for department collection.

d. Newspapers, wrapping paper or other light refuse or rubbish which is likely to be blown or scattered about the streets shall be securely bundled, tied or packed before being placed for collection. Such material shall be kept and placed for collection in the same manner as the receptacles.

e. 1. No person shall deposit household or commercial refuse or liquid wastes in a public litter basket placed on the streets by the department or any other person. There shall be a rebuttable presumption that the person whose name, or other identifying information, appears on any household or commercial refuse or liquid wastes deposited in such public litter basket violated this paragraph.

2. No person shall place household or commercial refuse in or upon any sidewalk, street, lot, park, public place, wharf, pier, dock, bulkhead, slip, navigable waterway or other area whether publicly or privately owned, except in accordance with rules of the department relating to collection (i) by the department or (ii) by a private carter that is required to be licensed or registered pursuant to chapter 1 of title 16-A of the code. There shall be a rebuttable presumption that the person whose name, or other identifying information, appears on any household or commercial refuse placed in or upon any sidewalk, street, lot, park, public place, wharf, pier, dock, bulkhead, slip, navigable waterway or other area whether publicly or privately owned violated this paragraph.

f. Any person violating the provisions of this section, except subdivision e, shall be liable for a civil penalty of $50 for the first violation, $100 for a second violation within any twelve-month period, and $200 for a third or subsequent violation within any twelve-month period. Any person violating the provisions of paragraph (1) of subdivision e of this section shall be liable for a civil penalty of $100 for the first violation, $250 for a second violation within any twelve-month period, and $350 for a third or subsequent violation within any twelve-month period. Any person violating the provisions of paragraph (2) of subdivision e of this section shall be liable for a civil penalty $75 for the first violation, $300 for a second violation within any twelve-month period, and $400 for a third or subsequent violation within any twelve-month period.

g. In the instance where a notice of violation is issued for breach of the provisions of this section such process shall be returnable to the environmental control board, which shall have the power to impose the civil penalties provided in subdivision f of this section.

h. In the event that a person fails to answer such notice of violation within the time provided therefor by the environmental control board, that person shall become liable for additional penalties. The additional penalties shall be $300 for each violation.

i. Nothing herein contained shall be construed to supersede, substitute for or abrogate the provisions of article one hundred fifty-three of the health code or article five of subchapter two of chapter two of title twenty-seven of the code.

(Am. L.L. 2018/135, 7/29/2018, eff. 9/27/2018; Am. L.L. 2021/080, 7/18/2021, eff. 11/15/2021; Am. L.L. 2022/110, 11/18/2022, eff. 11/18/2022; Am. L.L. 2022/111, 11/18/2022, eff. 4/1/2023; Am. L.L. 2025/180, 12/12/2025, eff. 12/12/2025; Am. 2025 N.Y. Laws Ch. 705, 12/19/2025, eff. 12/19/2025; Am. L.L. 2026/060, 1/29/2026, eff. 1/29/2026; Am. 2026 N.Y. Laws Ch. 82, 2/13/2026, eff. 12/19/2025)

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 2021/080, L.L. 2022/111 and L.L. 2026/060.

§ 16-120.1 Storage, treatment, transportation and disposal of regulated medical waste, other medical waste and regulated household waste.

a. It shall be unlawful for any person to store, treat, transport or dispose of or to cause to be stored, treated, transported or disposed of any regulated medical waste or other medical waste except in the manner prescribed in the public health law, the environmental conservation law, or any rules or regulations promulgated pursuant thereto and the New York city health code and any regulations of the city department of health and the city department of sanitation. In addition, it shall be unlawful for any person to dispose of or to cause to be disposed of any regulated medical waste within the solid waste disposal system of the city, provided that the department may accept at its incinerators classes of regulated medical waste that were accepted at such incinerators as of June twenty-first, nineteen hundred eighty-nine if it has obtained all necessary authorizations required by law to incinerate such classes of regulated medical waste. In addition, it shall be unlawful to dispose of or to cause to be disposed of any laboratory waste or surgical waste as defined in this section, or classes of regulated medical waste that were accepted at department incinerators as of June twenty-first, nineteen hundred eighty-nine, whether or not such laboratory waste, surgical waste or other classes of regulated medical waste have been autoclaved or subjected to a similar decontamination technique other than incineration, in the landfills of the city.

b. For purposes of this section, the following terms shall have the following meanings:

1. Regulated medical waste means any waste that is generated in the diagnosis, treatment or immunization of human beings or animals, in research pertaining thereto, or in the production or testing of biologicals, when listed as follows, provided, however, that regulated medical waste shall not include any hazardous waste identified or listed pursuant to section 27-0903 of the environmental conservation law or any household waste as defined in regulations promulgated under such section:

i. cultures and stocks of infectious agents and associated biologicals, including cultures from medical and pathological laboratories, cultures and stocks of infectious agents from research and industrial laboratories, wastes from the production of biologicals, discarded live and attenuated vaccines, and culture dishes and devices used to transfer, inoculate, and mix cultures;

ii. human pathological wastes, including tissues, organs, body parts and body fluids that are removed during surgery or autopsy or other medical procedures, and specimens of body fluids and their containers;

iii. waste human blood and products of blood, including serum, plasma, and other blood components and their containers;

iv. sharps that have been used in animal or human patient care or in medical, research, or industrial laboratories, including hypodermic needles, syringes, pasteur pipettes, broken glassware and scalpel blades, blood vials, test tubes, needles with attached tubing, and such unused sharps that have been discarded;

v. contaminated animal carcasses, body parts, and bedding of animals that were known to have been exposed to infectious agents during research, production of biologicals, or testing of pharmaceuticals;

vi. wastes from surgery or autopsy that were in contact with infectious agents, including soiled dressings, sponges, drapes, lavage tubes, drainage sets, underpads, and surgical gloves;

vii. laboratory wastes from medical, pathological, pharmaceutical, or other research, commercial, or industrial laboratories that were in contact with infectious agents, including slides and cover slips, disposable gloves, laboratory coats and aprons;

viii. dialysis wastes that were in contact with the blood of patients undergoing hemodialysis or renal dialysis, including contaminated disposable equipment and supplies such as tubing, filters, disposable sheets, towels, gloves, aprons and laboratory coats;

ix. biological waste and discarded materials contaminated with blood, excretion, exudates or secretion from human beings or animals who are isolated to protect others from highly communicable diseases;

x. any other waste material designated by the administrator of the United States environmental protection agency as a regulated medical waste under the provisions of the medical waste tracking act of 1988, 42 U.S.C. § 6992, et seq., and the regulations promulgated pursuant thereto; and

xi. any other waste material included in the list of regulated medical wastes established in regulations promulgated by the state commissioner of environmental conservation pursuant to section 27-1502 of the environmental conservation law. For purposes of this paragraph, "infectious agents" shall be limited to those organisms that cause disease or an adverse health impact to humans.

2. Laboratory waste means all matter that is discarded from clinical, pathological or research laboratory areas at which activities are required to be conducted or supervised by persons licensed by the city or state to provide health, medical, pharmaceutical or laboratory services.

3. Other medical waste means laboratory waste and surgical waste as defined in paragraphs two and six of this subdivision.

4. Person means any individual, partnership, company, corporation, association, firm, organization, or any other group of individuals, or any officer or employee or agent thereof, provided that person shall not mean any individual who generates regulated household waste, and provided further that where a person authorized by law to transport regulated medical waste transports waste pursuant to an agreement with a generator of regulated medical waste or other medical waste, such person shall not be considered an agent of such generator for purposes of this paragraph.

5. Regulated household waste means any item that may cause punctures or cuts that is used in the administration of medication and is disposed of with residential solid waste, including but not limited to intravenous tubing and syringes with needles attached. Regulated household waste shall not include such items generated by persons licensed by the city or state to provide health, medical, pharmaceutical or laboratory services at facilities where such services are performed, but shall include any such items generated in the course of home health care.

6. Surgical waste means all materials discarded from surgical procedures and includes, but is not limited to, disposable gowns, shoe covers, masks, headcovers, gloves and sponges.

c. No solid waste of any person required to be licensed by the city or state to provide health, medical, pharmaceutical or laboratory services shall be collected or received by the department for disposal unless such person has executed a certification that to the best of his or her knowledge or belief such waste does not contain any material for which such disposal is unlawful.

d. The commissioner in conjunction with the commissioner of health and mental hygiene shall promulgate and implement regulations, consistent with the laws of this state, governing the safe disposal of regulated household waste. Any violation of such regulations shall be punishable only by a civil penalty of not less than fifty dollars nor more than two hundred fifty dollars.

e. Any person who generates any quantity of regulated medical waste shall file with the commissioner a copy of any annual reports or additional reports required to be submitted by such person to the commissioner of environmental conservation pursuant to paragraph d of subdivision one of section 27-1510 of the environmental conservation law or paragraph (d) of subdivision two of section 1389-bb of the public health law. Such reports shall be filed with the commissioner within fifteen days of submission to the commissioner of environmental conservation.

f. Any person who generates regulated medical waste or other medical waste shall file with the department a "solid waste removal plan." Such plan shall include at a minimum:

1. the name, address and telephone number of the person or facility generating such waste;

2. the name, address, telephone number and permit number(s) of the transporter of such waste;

3. the name, address and telephone number of the disposal site(s) for such waste;

4. an estimate of the quantity of such waste produced and disposed of monthly; and

5. any other information required by regulation of the commissioner or the commissioner of health and mental hygiene. An amended plan shall be filed within fifteen days of the time when any information in a plan that is filed with the department changes, or when the commissioner or the commissioner of health requires by regulation additional information.

g. The commissioner of sanitation or health and mental hygiene or an authorized agent of such commissioner may enter upon public or private property for the purpose of conducting inspections or investigations necessary for the exercise of the powers or the performance of the duties of such commissioners pursuant to this section, including the inspection of documents or records relating to the storage, treatment, transportation or disposal of regulated medical waste or other medical waste required to be maintained by local, state or federal law, provided that such commissioner or agent may not inspect records containing medical information privileged under the laws of this state without all authorizations required by such laws, and that such commissioner or agent shall make reasonable efforts not to interfere with patient care activities. Such entry may be made without a warrant during regular and usual business hours upon property used for nonresidential purposes, including but not limited to the provision of health, medical, pharmaceutical or laboratory services, provided that such use is related to the generation, storage or disposal of regulated medical waste, or at other times upon such property in response to any immediate threat to the health or safety of one or more individuals, or of the public, that arises from the generation, storage or disposal of regulated medical waste upon such property. Warrantless inspection or investigation pursuant to this subdivision shall extend only to: (i) waste storage areas; (ii) documents or records relating to storage, treatment, transportation or disposal of regulated medical waste, including documents or records required to be maintained by local, state or federal law; (iii) bags and containers for the disposal of regulated medical waste; (iv) documents or records identifying the number and origin of specimens of human tissues, organs and fluids that constitute regulated medical waste, other than records containing medical information privileged under the laws of this state; and (v) any other inspection or investigation necessary to respond to an immediate threat to the health or safety of one or more individuals, or of the public, arising from generation, storage or disposal of regulated medical waste upon such property. Refusal to permit entry pursuant to this subdivision, where the commissioner of sanitation or health and mental hygiene or an authorized agent of such commissioner has obtained a warrant for such entry or is authorized by this subdivision to inspect or

investigate without a warrant, shall be a misdemeanor punishable by not more than thirty days imprisonment, or by a fine of not more than one hundred dollars or both.

h. 1. In addition to any other enforcement procedures authorized by law, the commissioner, with the written approval of the commissioner of health and mental hygiene, shall be authorized to order in writing that premises on which activity in violation of this section is occurring be closed if the commissioner finds that continuing activity on such premises would result in generation, storage or disposal of regulated medical waste or other medical waste in a manner posing an imminent threat to the public health or safety, provided that no facility licensed, permitted or certificated pursuant to article twenty-eight of the public health law or part thereof or facility providing inpatient services or part thereof may be closed pursuant to this subdivision. Such premises may be opened at any time by any person otherwise lawfully entitled to enter such premises in response to an immediate threat to the health or safety of one or more individuals, or of the public. For the purpose of this subdivision, the determination whether an imminent threat to the public health or safety exists shall be based on factors that include but are not limited to: (i) the quantity of regulated medical waste, the generation, storage or disposal of which is in violation of this section; (ii) the types of such regulated medical waste; and (iii) the risk of harm to the public or the environment.

2. Issuance of an order pursuant to this subdivision may occur prior to a hearing and determination whether a violation of the provisions of this section has occurred and whether there exists an imminent threat to the public health or safety, or during such hearing, or up to two business days after the conclusion of such hearing, provided that: (i) where such issuance occurs prior to such hearing and determination, such hearing shall be held within two business days of such issuance and such determination shall be rendered within twenty-four hours of the conclusion of such hearing; (ii) where such issuance occurs during such hearing, such determination shall be rendered within twenty-four hours of the conclusion of such hearing; and (iii) where such issuance occurs after the conclusion of such hearing but prior to such determination, such determination shall be made within twenty-four hours of such issuance. Any order issued pursuant to this subdivision may continue in effect after a finding of violation and imminent threat until the commissioner permits such premises to be opened pursuant to paragraph five of this subdivision.

3. Orders of the commissioner issued pursuant to this subdivision shall be posted at the premises on which the activity in violation of this subdivision has occurred.

4. Immediately upon the posting of an order issued pursuant to this subdivision, officers and employees of the department and officers of the New York city police department shall be authorized to act upon and enforce such order.

5. Where premises have been closed by order of the commissioner issued pursuant to this subdivision, the owner or lessee of such premises, or the authorized agent thereof, may at any time submit to the commissioner: (i) a written affirmation that such owner or lessee is in compliance with the provisions of this section and will maintain such compliance; and (ii) where such premises are used in the generation of waste for transport of which a legally authorized regulated medical waste transporter is required by law, proof of legal authorization to transport such waste or proof of agreement with a legally authorized regulated medical waste transporter to have such waste transported, or proof that such waste is lawfully treated on such premises so as not to require such authorization or agreement. Upon receipt of such affirmation and proof, the commissioner shall within one business day either permit such premises to be opened or issue a written determination that such owner or lessee is not in compliance with or has not instituted procedures sufficient to remain in compliance with the provisions of this section, or that such proof of legal authorization or agreement is insufficient.

6. It shall be a misdemeanor for any person or other individual to open or cause to be opened any premises closed in accordance with an order of the commissioner, except in response to an immediate threat to the health or safety of one or more individuals, or of the public.

i. 1. For the purpose of this subdivision, the following terms shall have the following meanings:

i. "Abandonment" means the intentional relinquishment or forsaking of all possession or control of any substance.

ii. "Disposal" means the discharge, deposit, injection, dumping, spilling, leaking or placing of any substance so that such substance or any related constituent thereof may enter the environment, or the abandonment of any substance.

iii. "Environment" means any water, water vapor, any land including land surface or subsurface air, fish, wildlife, biota and all other natural resources.

iv. "Intentionally, knowingly, recklessly and criminal negligence" shall have the same meanings as defined in section 15.05 of the penal law.

2. i. Any person who violates any provisions of this section other than subdivision d shall be guilty of a violation and, upon conviction thereof, shall be punished by a fine not to exceed five thousand dollars per day of violation, or by imprisonment for a term of not more than fifteen days, or by both such fine and imprisonment.

ii. Any person who intentionally, knowingly or recklessly violates any provisions of this section other than subdivision d shall be guilty of a misdemeanor, and upon conviction thereof, shall for a first conviction be punished by a fine not to exceed fifteen thousand dollars per day of violation or by imprisonment for a term of not more than ninety days, or both such fine and imprisonment. If the conviction is for an offense committed after a first conviction of such person under this subparagraph, within the preceding five years, punishment shall be by a fine not to exceed fifty thousand dollars per day of violation, or by imprisonment for not more than one year or by both such fine and imprisonment.

3. Any person who with criminal negligence engages in conduct in violation of this section other than subdivision d which causes the release to the environment of regulated medical waste shall be guilty of a misdemeanor punishable by a fine of not more than fifteen thousand dollars or by imprisonment for not more than ninety days or by both such fine and imprisonment.

4. Any person who recklessly or knowingly engages in conduct in violation of this section other than subdivision d which causes the release to the environment of regulated medical waste shall be guilty of a misdemeanor punishable by a fine of not more than fifty thousand dollars or by imprisonment for not more than one year or both such fine and imprisonment.

5. In addition to any other penalties provided under paragraph one of this subdivision or any other provisions of law, any violation of the provisions of this section other than subdivision d shall be punishable by a civil penalty of not less than twenty-five hundred dollars nor more than ten thousand dollars for the first violation, not less than five thousand dollars nor more than ten thousand dollars for the second violation, and ten thousand dollars for the third and any subsequent violation. Civil penalties shall be recovered in a civil action brought in the name of the commissioner or in a proceeding before the environmental control board. For the purposes of this paragraph, each bag or container of solid waste with a capacity of not larger than one cubic yard shall constitute a separate violation of this section.

6. Notwithstanding paragraphs one, two, three, four and five of this subdivision, failure to file an annual or additional report pursuant to subdivision e of this section or failure to file a solid waste removal plan or an amended plan pursuant to subdivision f of this section shall be punishable only by a civil penalty of not less than fifty dollars nor more than two hundred fifty dollars if such report or plan is filed within thirty days of the filing deadlines set forth in such subdivisions.

7. Any affirmative defense available under title forty-four of article twenty-seven of the environmental conservation law shall be available in any prosecution or proceeding pursuant to this section that alleges a violation of title fifteen of article twenty-seven of the environmental conservation law or any rules or regulations promulgated pursuant thereto.

j. The commissioner shall promulgate and implement regulations providing that where an individual furnishes information that, in the opinion of the commissioner, results in a conviction or the imposition of a fine or civil penalty for a violation of any provision of this section, the commissioner shall offer as a reward to said individual, out of unexpended appropriations therefor:

i. fifty percent of any fine or penalty collected; or

ii. five hundred dollars when a prison sentence but no fine or civil penalty is imposed.

k. The commissioner shall suspend the use of the city's solid waste disposal system by any person licensed by the city or state to provide health, medical, pharmaceutical or laboratory services upon whom a notice of violation of this section has been served pending a hearing on and a finding as to liability for the violation. Such hearing shall be held within two business days after such suspension and a finding as to liability for the violation shall be made within twenty-four hours of the conclusion of such hearing. If a violation has been found, the commissioner shall continue such suspension for, in the case of a first occurrence, not less than one week, in the case of a second occurrence, committed within an eighteen month period, not less than one month and, in the case of a third and each subsequent occurrence, committed within an eighteen month period, not less than three months. In calculating such eighteen month period any period of suspension shall be excluded. For purposes of this subdivision any solid waste introduced into the solid waste disposal system of the city under one certification executed pursuant to subdivision c of this section shall constitute an occurrence.

l. In addition to the department, the department of health and mental hygiene shall enforce the provisions of this section, other than subdivisions h, j, and k of this section. This section shall not be construed to restrict in any manner the regulatory or enforcement authority conferred upon any agency of the city by any other provision of state or local law.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1995/076.

§ 16-120.2 Refuse compacting systems; multiple dwellings after May twentieth, nineteen hundred sixty-eight.

(a) *Definitions.* When used in this section:

"**Refuse compacting system**" means any machine or system of machines capable of reducing refuse by means other than burning so that such refuse is reduced by a volume to be determined by the commissioner and is suitable for collection by the department.

(b) All multiple dwellings erected after May twentieth, nineteen hundred sixty-eight that are four or more stories in height and occupied by twelve or more dwelling units, or that are "class B" multiple dwellings as defined by the multiple dwelling law shall be provided with a refuse compacting system constructed in conformity with all applicable laws and rules.

(c) On and after the effective date of the local law that added this section, any refuse compacting system that is required to be installed in a multiple dwelling pursuant to subdivision a of this section shall be utilized to compact all refuse that is not required to be source separated for other purposes pursuant to any provision of this title or any rules promulgated by the department in such multiple dwelling before such refuse is placed outside for collection by the department. Such refuse compacting system shall be maintained in good working condition and operated in accordance with the rules of the department and in conformity with all other applicable laws and rules.

(d) Any person who violates the requirements of this section shall be liable for a civil penalty of two hundred fifty dollars for the first offense, five hundred dollars for the second offense committed within any twelve-month period and one thousand dollars for the third and any subsequent offense committed within any twelve-month period. For purposes of this section, the second and any subsequent violation shall only occur after notice of the first violation has been properly served and an opportunity to cure such violation has been provided to the violator, provided that such opportunity to cure shall not exceed thirty days. Such penalties may be recovered in a civil action brought in the name of the commissioner or in a proceeding before the environmental control board.

(L.L. 2015/038, 5/6/2015, eff. 5/6/2016)

§ 16-121 Obstructing tracks.

a. It shall be unlawful for any person to throw, place or pile, or assist others in throwing, placing or piling any snow, ice or other impediment or obstruction to the running of cars upon the tracks of any railroad company, or in the space between the rails thereof or in the space between the tracks and a line distant three feet outside of such rails or any ashes, garbage, paper, dust, wood, metal or other rubbish, refuse, junk or other offensive material whatsoever on any part of any railroad right of way.

b. Violations. Any person who shall violate any provision of this section, upon conviction thereof, shall be punished by a fine of not less than one hundred dollars nor more than five hundred dollars or imprisonment for ninety days or both.

§ 16-122 Vehicles and other movable property.

a. Legislative intent. The need for this legislation is indicated by the ever increasing number of abandoned cars in the city of New York. The purpose of this section is to punish those persons who abandon and/or remove component parts of motor vehicles in public streets. It is not the intent to prohibit or preclude any person in lawful possession of a vehicle from making lawful repairs or removing any component part for the purpose of making such lawful repairs to a motor vehicle on a public street.

b. It shall be unlawful for any person, such person's agent or employee to leave, or to suffer or permit to be left, any box, barrel, bale of merchandise or other movable property whether or not owned by such person, upon any marginal or public street or any public place, or to erect or cause to be erected thereon any shed, building or other obstruction.

c. It shall be unlawful for any person, such person's agent or employee to leave, or suffer or permit to be left, any motor vehicle, not otherwise lawfully parked, whether or not owned by such person, in any marginal or public street, or any public place. The owner or driver of a disabled vehicle shall be allowed a reasonable time, not exceeding three hours, in which to remove said vehicle.

d. Any person convicted of a violation of the provisions of subdivision b or c of this section shall be punished by a fine of not less than fifty dollars nor more than two hundred fifty dollars, imprisonment for not more than ten days, or both.

e. It shall be unlawful for any person, such person's agent or employee, to abandon, or to suffer or permit to be abandoned any motor vehicle, whether or not owned by such person, in any marginal or public street, or any public place.

f. It shall be unlawful for any person to dismantle, or to remove any component part of any motor vehicle in any marginal or public street or any public area.

g. Any person convicted of a violation of the provisions of subdivision e or f of this section shall be punished by a fine of not less than one hundred dollars, or imprisonment for not more than one year.

h. Any person violating the provisions of subdivision b or c of this section shall be liable and responsible for a civil penalty of not less than twenty-five dollars nor more than one hundred dollars.

i. In the instance where the notice of violation, appearance ticket or summons is issued for breach of the provisions of this section and sets forth thereon civil penalties only, such process shall be returnable to the environmental control board, which shall have the power to impose the civil penalties hereinabove provided in subdivision h of this section.

j. In the event that a violator fails to answer such notice of violation, appearance ticket or summons within the time provided therefor by the rules and regulations of the environmental control board, he or she shall become liable for additional penalties. The additional penalties shall not exceed fifty dollars for each violation.

§ 16-123 Removal of snow, ice and dirt from sidewalks; property owners' duties.

a. Every owner, lessee, tenant, occupant, or other person, having charge of any building or lot of ground in the city, abutting upon any street where the sidewalk is paved, shall, within four hours after the snow ceases to fall, or after the deposit of any dirt or other material upon such sidewalk, remove the snow or ice, dirt, or other material from the sidewalk and gutter, the time between nine post meridian and seven ante meridian not being included in the above period of four hours. Such removal shall be made before the removal of snow or ice from the roadway by the commissioner or subject to the regulations of such commissioner. In the boroughs of Queens and Staten Island, any owner, lessee, tenant or occupant or other person who has charge of any ground abutting upon any paved street or public place, for a linear distance of five hundred feet or more, shall be considered to have complied with this section, if such person shall have begun to remove the snow or ice from the sidewalk and gutter before the expiration of such four hours and shall continue and complete such removal within a reasonable time.

b. In case the snow and ice on the sidewalk shall be frozen so hard that it cannot be removed without injury to the pavement, the owner, lessee, tenant, occupant or other person having charge of any building or lot of ground as aforesaid, may, within the time specified in the preceding subdivision, cause the sidewalk abutting on such premises to be strewed with ashes, sand, sawdust, or some similar suitable material, and shall, as soon thereafter as the weather shall permit, thoroughly clean such sidewalks.

c. [Reserved.]

d. Whenever any owner, lessee, tenant, occupant, or other person having charge of any building or lot of ground, abutting upon any street or public place where the sidewalk is paved, shall fail to comply with the provisions of this section, the commissioner may cause such removal to be made.

e. The expense of such removal as to each particular lot of ground shall be ascertained and certified by the commissioner to the comptroller, who shall pay the same in the same manner as the expense of removing snow from the streets is paid. Upon the payment of such expense, the comptroller shall deliver a certificate thereof to the council and the amount of such expense shall be added to and made to form a part of the annual taxes of the next ensuing fiscal year against such property, and the same shall be collected in and with and as part of the annual taxes for such fiscal year. The corporation counsel is directed and may sue for and recover the amount of such expense.

f. This section shall not be regarded as interfering with the owner of any lots throwing into the roadway of the streets any snow or ice which may be removed from the sidewalk or gutter directly in front of such lot.

g. The term "lot" as used in this section shall include a space not to exceed twenty-five feet in width fronting the street upon which the violation is charged to have been permitted, committed or omitted.

h. Any person violating the provisions of subdivisions (a) or (b) of this section shall be liable and responsible for a civil penalty of not less than ten dollars nor more than one hundred fifty dollars for the first violation, except that for a second violation of subdivision (a) or (b) within any twelve-month period such person shall be liable for a civil penalty of not less than one hundred fifty dollars nor more than two hundred fifty dollars and for a third or subsequent violation of subdivision (a) or (b) within any twelve-month period such person shall be liable for a civil penalty of not less than two hundred fifty dollars nor more than three hundred fifty dollars.

i. In the instance where the notice of violation, appearance ticket or summons is issued for breach of the provisions of this section and sets forth thereon civil penalties only, such process shall be returnable to the environmental control board, which shall have the power to impose the civil penalties hereinabove provided in subdivision h of this section.

j. In the event that a violator fails to answer such notice of violation, appearance ticket or summons within the time provided therefor by the rules and regulations of the environmental control board, he or she shall become liable for additional penalties. The additional penalties shall not exceed three hundred fifty dollars for each violation.

(Am. L.L. 2016/149, 12/6/2016, eff. 3/6/2017)

§ 16-124 Removal of snow and ice from the streets.

The commissioner, immediately after every snowfall or the formation of ice on the streets, shall forthwith cause the removal of the same, and shall keep all streets clean and free from obstruction.

§ 16-124.1 Borough-based snow plowing and removal plans.

a. The following terms shall have the following meanings for purposes of this section:

(1) The term "bus shelter" shall mean a location that has a cover or ceiling and is intended to be used as shelter for individuals waiting to board a New York city transit authority vehicle, and shall include three feet on any open side of such shelter and to the curb on all portions of the sidewalk covered under this provision.

(2) The term "bus stop" shall mean a location that is not a bus shelter, designated by signage for New York city transit authority vehicles to pick up or discharge passengers, which location includes five feet of the sidewalk and the gutter immediately adjacent to the curb for the portion of such curb.

(3) The term "curb cut" shall have the same meaning as defined in section 27-480 of the code.

(4) The term "pedestrian median" shall mean a direct path between curb cuts on a median strip dividing a roadway or, where no curb cuts exist on such a median strip, the portion of the median strip designed to be traversed by pedestrians in order to cross the roadway that such median strip divides.

(5) The term "primary street" shall mean a street that is determined by the department to be of the first priority for purposes of snow plowing and/or removal.

(6) The term "snow event" shall mean any snowfall equal to or in excess of six inches within a period of twenty-four hours in any of the five boroughs based on the department of sanitation's measurements.

b. Beginning on November fifteenth, 2011, and on every November fifteenth thereafter, the commissioner shall submit to the council and make available to the public on the city's website a snow plowing and removal plan for each borough that shall include, but not be limited to, the following:

(1) The address of each department garage and other department facility within the borough identified by district or section and the number of uniformed department employees assigned to each such garage or facility for purposes of addressing snow conditions;

(2) An inventory by district of department-owned snow management equipment and resources and a city-wide inventory of other city-owned snow

management equipment and resources that could, if available, be used during a snow event, as determined by city officials and the agency, office, agencies or offices responsible for the deployment of such city-owned snow management equipment and resources;

(3) (i) Definitions of each of the priority designation categories, including criteria for making such designations and any changes to the previous year's priority designation category and the reasons for such changes; and (ii) a link to a website on which a map of each community district with the priority designation categories for each street in such district is viewable;

(4) How the department plans to address the following types of tasks during a snow event: (i) plowing and/or removal of snow and ice from streets within each borough; (ii) plowing and/or removal of snow and ice from curb cuts and pedestrian medians at intersections on primary streets; (iii) plowing and/or removal of snow and ice from crosswalks, sidewalks adjacent to parks and bus stops; and (iv) dispersal of salt, sand or other material applied to roads in icy or snowy conditions; and

(5) The commissioner shall designate and identify the following: (i) the borough chief or chiefs who will be responsible for the implementation of the applicable borough-specific snow plan; (ii) department personnel who will report to the office of emergency management on a city-wide basis during snow events and who will be directly responsible for communicating with such office and the department; and (iii) personnel from the department's customer service and government relations offices who will communicate on a borough-by-borough basis with council members, community boards and the borough presidents in order to provide, receive and respond to information from such elected officials and community boards regarding snow event conditions.

c. Beginning on October first, two thousand eleven, and every October first thereafter, the commissioner shall submit a draft snow plowing and removal plan for each borough for comment to the council members, community boards and borough president from that borough. Amendments to the draft plan shall be included in the final snow plowing and removal plan for each borough to be issued no later than November fifteenth of each year pursuant to this section.

§ 16-125 Dumping snow and ice from piers.

The commissioner may cause or authorize snow and ice to be dumped into the waters of the port of New York, between the piers near the inshore ends.

§ 16-126 Snow removal; employees and equipment.

a. In case of a snowfall or other emergency, the commissioner may employ and hire temporarily as many persons, vehicles, machinery and equipment as shall be rendered necessary by such emergency, forthwith reporting, in the case of a snowfall, the number of such persons, vehicles, machinery and equipment and in the case of any other emergency such action with the full particulars thereof to the mayor, but in the case of a snowfall no such person, vehicles, machinery or equipment shall be so hired or employed for a longer period than seven days and in the case of any other emergency for a longer period than three days.

b. All such employees shall be employed directly by the department and not through contractors or other persons, unless the commissioner shall determine that this requirement must for proper action in a particular instance be dispensed with.

c. The services of any person employed, and of vehicles, machinery and equipment hired pursuant to this section, shall be paid for in full and directly by the department, at such times as may be prescribed by the commissioner.

d. In all emergency work performed by laborers in the removal of snow where workers are engaged by the hour or day by a contractor employed for the purpose, such work shall be paid for directly to those individuals employed on it, in the currency of the United States and not by check or ticket. Every contractor engaged in the removal of snow shall be required to stipulate with the commissioner or others empowered to enter into contracts for that purpose, as the case may be, to observe the provisions of this subdivision, a violation of which shall be deemed to abrogate any such contract.

§ 16-127 Earth, rocks and rubbish.

a. In all cases where the sidewalk or roadway of a street shall be incumbered or obstructed by the caving in or falling off of any earth, rocks or rubbish, or anything whatever, from any lot adjoining such sidewalk or roadway, the owner or occupant of such lot, or the agent of such owner or occupant, shall cause such earth, rocks, rubbish or other thing to be removed and cleaned from such sidewalk or roadway, within three days after a written or printed notice shall have been served by the commissioner or a duly designated representative, on such owner, personally, or shall have been left at the place of residence of such owner in this city; or, if such owner does not reside in the city, and such notice shall not be personally served, then within twenty days after such notice to be sent by mail, addressed to such owner at his or her place of residence, or, when such residence is unknown to such commissioner, within twenty days after such notice shall have been posted in a conspicuous place on such premises.

b. If the owner, occupant or agent fails to comply with such notice, within the time specified in this section, after notice thereof, the commissioner shall cause the same to be removed at the expense of the owner, occupant or agent, and such expense shall be sued for and recovered in the name of the city.

c. The corporation counsel shall cause a statement of such cost and expense, together with the description of the premises, to be filed in the office of the register or county clerk of the appropriate county.

d. Any person convicted of a violation of any of the provisions of this section shall be punished by a fine of not less than fifty dollars nor more than two hundred fifty dollars, imprisonment for not more than ten days, or both.

e. Any person violating the provisions of this section shall be liable and responsible for a civil penalty of fifty dollars.

f. In the instance where the notice of violation, appearance ticket or summons is issued for a breach of the provisions of this section and sets forth thereon civil penalties only, such process shall be returnable to the environmental control board, which shall have the power to impose the civil penalties hereinabove provided in subdivision e of this section.

g. In the event that a violator fails to answer such notice of violation, appearance ticket or summons within the time provided therefor by the rules and regulations of the environmental control board, such violator shall become liable for additional penalties. The additional penalties shall not exceed fifty dollars for each violation.

(Am. L.L. 2021/080, 7/18/2021, eff. 11/15/2021)

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 2021/080.

§ 16-128 Removal of encumbrances from streets.

a. 1. The commissioner shall remove or cause to be removed any vehicle, box, barrel, bale of merchandise, or other movable property or article or thing whatsoever found upon any street, in accordance with regulations adopted by the commissioner.

2. If a vehicle found upon any street is identified as abandoned by the department or reported as abandoned to the department via the 311 customer service center, any other agency, or any official notification received by the department, including any electronic mail sent to the department by a council member or community board, the commissioner shall:

(a) Within 24 hours of the department making such identification or receiving such report, determine if such vehicle is an abandoned vehicle described by subdivision 2 of section 1224 of the vehicle and traffic law; and

(b) Within 72 hours of the department making such identification or receiving such report, remove or cause to be removed such vehicle from such street, provided that such vehicle is an abandoned vehicle described by subdivision 2 of section 1224 of the vehicle and traffic law and the vehicle identification number of such vehicle is not ascertainable by such department.

b. Notwithstanding any other provision of this section, the department shall be responsible for the removal of any abandoned vehicle described by subdivision 2 of section 1224 of the vehicle and traffic law from any street.

c. The commissioner shall adopt rules relating to:

1. The leasing of yards for storage of property removed under the authority of this section;

2. Notification to the owner of the property removed, if such owner is ascertainable, that the property is being held by the commissioner;

3. Redemption, by the owner, of the property removed;

4. Reimbursement, by the owner, of the expenses of removal incurred by the commissioner;

5. The sale, by the commissioner, of the property held by the commissioner;

6. The keeping of records and accounts, the transmission of such records to the comptroller, and the transmission of funds collected to the commissioner of finance; and

7. Such other rules as the commissioner may deem necessary to carry out the provisions of this section.

(Am. L.L. 2025/094, 7/30/2025, eff. 11/27/2025; Am. L.L. 2025/100, 7/30/2025, eff. 11/27/2025)

§ 16-129 Rates for the use of department disposal facilities.

The commissioner may require any person desiring to use some or all of the incinerators or other plants under his or her control to set apart for his or her use, for the disposal of manure, swill, ashes, street sweepings, bones, garbage, night soil, offal, fats, hides, hoofs or other refuse parts of slaughtered animals, refuse, rubbish, bodies of dead animals or any other offensive or noxious material, paper stock, or trade waste, to pay for the disposal of the same at rates established by the council by local law, upon recommendation of the commissioner, and on such terms and conditions as such commissioner shall prescribe and subject to rules governing the use of such incinerators or other plants, except as otherwise provided by section 16-203. The commissioner may make, adopt and promulgate rules to effectuate the purposes of this section.

§ 16-129.1 Rate for the use of department compost facilities.

The commissioner is authorized to collect fees for the disposal of yard waste and organic waste at department compost facilities. Such fees shall be set by rule promulgated by the commissioner. For purposes of this section, the terms "yard waste" and "organic waste" have the same meanings as set forth in section 16-303 and the term "compost facilities" means facilities operated by the department and used for the aerobic and thermophilic decomposition of organic constituents of solid waste to produce a stable, humus-like material.

(Am. L.L. 2023/085, 7/9/2023, eff. 7/9/2023)

§ 16-130 Permit for operators of dumps, non-putrescible solid waste transfer stations, putrescible solid waste transfer stations and fill material operations.

a. As used in this section:

1. The term "solid waste" shall mean all putrescible and non-putrescible materials or substances, other than those materials or substances described in subparagraph (b) of this paragraph, that are discarded or rejected, including but not limited to garbage, refuse, waste collected by any person required to be licensed or registered pursuant to chapter 1 of title 16-A of this code, rubbish, tires, ashes, contained gaseous material, incinerator residue, construction and demolition debris, discarded automobiles and offal. Such term shall include recyclable materials, as defined in subdivision i of section 16-303 of this title.

(a) A material is discarded or rejected if it is:

(1) spent, useless, worthless or in excess to the owners at the time of such discard or rejection;

(2) disposed of;

(3) burned or incinerated, including material burned as a fuel for the purpose of recovering useable energy; or

(4) accumulated, stored or physically, chemically or biologically treated (other than burned or incinerated) instead of or before being disposed of.

(b) The following are not solid waste for the purpose of this section:

(1) domestic sewage;

(2) any mixture of domestic sewage and other wastes that passes through a sewer system to a publicly owned treatment works for treatment, except any material that is introduced into such system in order to avoid the provisions of this title or of state regulations promulgated to regulate solid waste management facilities;

(3) industrial wastewater discharges that are actual point source discharges subject to permits under article seventeen of the environmental conservation law; provided that industrial wastewaters while they are being collected, stored or treated before discharge and sludges that are generated by industrial wastewater treatment are solid wastes;

(4) irrigation return flows;

(5) radioactive materials that are source, special nuclear, or by-product material under the federal Atomic Energy Act of 1954, as amended, 42 U.S.C. § 2011, et seq.;

(6) materials subject to in-situ mining techniques which are not removed from the ground as part of the extraction process;

(7) hazardous waste as defined in section 27-0901 of the environmental conservation law, including material containing hazardous waste; and

(8) regulated medical waste as defined in title fifteen of article twenty-seven of the New York state environmental conservation law, in title thirteen of article thirteen of the New York state public health law or in section 16-120.1 of the code, or any rules or regulations promulgated pursuant to such provisions of law.

2. The term "putrescible solid waste" shall mean solid waste containing organic matter having the tendency to decompose with the formation of malodorous by-products;

3. The term "non-putrescible solid waste" shall mean solid waste, whether or not contained in receptacles, that does not contain organic matter having the tendency to decompose with the formation of malodorous by-products, including but not limited to dirt, earth, plaster, concrete, rock, rubble, slag, ashes, waste timber, lumber, plexiglass, fiberglass, ceramic tiles, asphalt, sheetrock, tar paper, tree stumps, wood, window frames, metal, steel, glass, plastic pipes and tubes, rubber hoses and tubes, electric wires and cables, paper and cardboard;

4. The term "dump" shall mean any structure, building or other premises, whether improved or unimproved, at which solid waste is received for the purpose of final disposal, unless such waste is received for a fill material operation;

5. The term "non-putrescible solid waste transfer station" shall mean any structure, building or other premises, whether improved or unimproved, at which only non-putrescible solid waste is received for the purpose of subsequent transfer to another location, regardless of whether such non-putrescible solid waste is subject to any processing or reduction in volume at such structure, building or premises;

6. The term "putrescible solid waste transfer station" shall mean any structure, building or other premises, whether improved or unimproved, at which any amount of putrescible solid waste is received for the purpose of subsequent transfer to another location, regardless of whether such putrescible solid waste is mixed with non-putrescible solid waste or is subject to any processing or reduction in volume at such structure, building or premises;

7. The term "fill material" shall mean only clean material consisting of earth, ashes, dirt, concrete, asphalt millings, rock, gravel, stone or sand, provided that such material shall not contain organic matter having the tendency to decompose with the formation of malodorous by-products; and

8. The term "fill material operation" shall mean the grading, levelling, surcharging, compacting or final disposition of fill material for the purpose of land alteration or improvement, including but not limited to change of the existing property grade, filling of lands below established grades or of lands under water to established grades, and filling of lands which requires approval by any city or state agency.

b. It shall be unlawful for any person or public agency other than the department to conduct, operate or use any pier or part thereof, or any piece or parcel of land or land under water within the city as a dump or as a non-putrescible solid waste transfer station or putrescible solid waste transfer station, or for a fill material operation without having first obtained for each pier or part thereof, or for each piece or parcel of land or of land under water, in addition to any other permit required by law, a permit from the commissioner and, where required by any law or rule, the prior written approval of the commissioner of ports and trade. The commissioner may establish by rule one or more classes of permits pursuant to this section and section 16-131 of this chapter.

c. Nothing contained in this section or in section 16-131 of this chapter shall be construed to allow the grading, levelling, surcharging, compacting or final disposition of any material other than fill material for the purpose of land alteration or improvement.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1989/014, L.L. 1990/040, and L.L. 1996/042.

§ 16-131 Rules for the operation of dumps, non-putrescible solid waste transfer stations, putrescible solid waste transfer stations and fill material operations; permits and fees.

a. The commissioner shall have power to adopt rules:

1. controlling and providing for supervision over the conduct, operation, and use by persons or public agencies of all piers or lands or lands under water used as dumps, non-putrescible solid waste transfer stations or putrescible solid waste transfer stations, or for fill material operations;

2. requiring applicants and permittees to disclose to the department information determined by the commissioner to be necessary for the department to fulfill its duties under this title. Such information may include but need not be limited to financial statements, and any annual or quarterly report required to be filed with the state department of environmental conservation pursuant to regulations promulgated by such department to regulate solid waste management facilities;

3. requiring permittees to maintain records determined by the commissioner to be necessary for the department to fulfill its duties under this chapter and to protect the public health and safety. Such records shall include, without limitation, a log of the names of prospective customers denied the use of such dump, transfer station, or fill material operation.

b. The commissioner shall, pursuant to subdivision a of this section, adopt rules:

1. establishing, in consultation with the commissioners of health and environmental protection, requirements appropriate for protection of public health and the environment concerning siting of dumps, non-putrescible solid waste transfer stations, putrescible solid waste transfer stations and/or fill material operations in relation to other such facilities, residential premises and/or other premises for which such requirements may be appropriate. Requirements established pursuant to this paragraph shall be in addition to other applicable siting requirements;

2. limiting the hours of operation of premises required to be permitted pursuant to section 16-130 of this chapter;

3. prescribing the use of deodorants, and other odor control measures as may be needed, at putrescible solid waste transfer stations and, where appropriate, at other facilities required to be permitted pursuant to such section;

4. prescribing the use of ventilation systems in fully enclosed structures on premises required to be permitted pursuant to this section; and

5. requiring that all activities relating to the processing, tipping, sorting, storage and compaction of solid waste at putrescible solid waste transfer stations, and, in the commissioner's discretion, at other premises required to be permitted pursuant to this section, be conducted within a fully enclosed structure. If the commissioner determines that such activities would not adversely affect a residential area if not conducted within a fully enclosed structure, then the commissioner may grant an exemption from such requirement, provided that no exemption may be granted in contravention of regulations promulgated by the state department of environmental conservation to regulate solid waste management facilities or other applicable law. Any person who, on the effective date of this local law, holds a permit for, and conducts such activities on, premises where no fully enclosed structure exists, and who shall be required to conduct such activities within a fully enclosed structure, may be granted a reasonable time, to be determined by the commissioner, to construct such structure.

c. The commissioner shall issue permits to such persons or public agencies engaged in use of piers or lands or lands under water within the city as dumps, non-putrescible solid waste transfer stations or putrescible solid waste transfer stations. The commissioner shall collect an annual fee of seven thousand dollars for each permit for any such pier or part thereof, or for each piece or parcel of land or land under water used as a dump or as a non-putrescible solid waste transfer station, and an annual fee of thirteen thousand dollars for each permit for any such pier or part thereof, or for each piece or parcel of land or land under water used as a putrescible solid waste transfer station. The commissioner shall collect an annual registration fee of seven

thousand dollars for an intermodal solid waste container facility. The commissioner may by rule provide for suspension or revocation of any permit or registration issued pursuant to this subdivision for cause or violation of the orders or rules of the commissioner.

d. The commissioner shall issue permits every six months to persons or public agencies engaged in use of piers or lands or lands under water for fill material operations. The commissioner shall collect a fee every six months of twelve hundred fifty dollars for each permit for any such pier or part thereof, or for each piece or parcel of land or land under water where the anticipated or actual aggregate amount of fill material for grading, levelling, surcharging, compacting or final disposition during such six-month period is equal to or greater than one thousand cubic yards, and a fee of six hundred twenty-five dollars for each permit for any such pier or part thereof, or for each piece or parcel of land or land under water where the anticipated or actual aggregate amount of fill material for grading, levelling, surcharging, compacting or final disposition during such six-month period is less than one thousand cubic yards, provided that no fee shall be charged for the first six-month permit issued in a calendar year for any pier or part thereof, or for each piece or parcel of land or land under water where the anticipated or actual aggregate amount of fill material for grading, levelling, surcharging, compacting or final disposition during such six-month period is less than three hundred cubic yards. The commissioner may by regulation provide for suspension or revocation of any permit issued pursuant to this paragraph for cause or violation of the orders or rules or regulations of the commissioner. Notwithstanding any other provision of this section or of section 16-130 of this chapter, no permit or fee shall be required of an owner or occupant of residential property engaged in a fill material operation or such property where the anticipated or actual aggregate amount of fill material for grading, levelling, surcharging, compacting or final disposition during a six-month period is less than three hundred cubic yards.

e. Rules adopted by the commissioner pursuant to this section shall become effective only after filing and publication as prescribed by chapter forty-five of the charter. In addition, notwithstanding such chapter, prior to adoption by the commissioner of a final rule pursuant to subdivision e of section one thousand forty-three of the charter, and after consideration of relevant comments presented pursuant to subdivision d of such section, the commissioner shall submit to the council the draft text of the final rule proposed to be published in the City Record; the council shall have thirty days to comment upon such text. The final rule may include revisions in response to comment from members of the council and shall not be published in the City Record before the thirty-first day after such submission, unless the speaker of the council authorizes earlier publication.

f. As used in this section:

1. the terms "dump," "non-putrescible solid waste transfer station," "putrescible solid waste transfer station," "fill material" and "fill material operation" shall have the meanings ascribed in section 16-130 of this chapter; and

2. the term "intermodal solid waste container facility" shall mean a facility or premises served by rail or vessel at which intermodal containers are transferred from transport vehicle to transport vehicle for the purpose of consolidating intermodal containers for shipment by rail or vessel to an authorized disposal or treatment facility, where the contents of each container remain in their closed containers during the transfer between transport vehicles, and storage remains incidental to transport at the location where the containers are consolidated.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1990/040 and L.L. 1996/042.

§ 16-131.1 Issuance, renewal, suspension and revocation of permits.

The commissioner shall be responsible for the issuance, renewal, suspension and revocation of permits required by section 16-130 of this chapter. An application for such a permit shall also be presented by the department to the New York city trade waste commission for review by such commission. The commissioner shall consider the recommendations of such commission in making a determination pursuant to this section.

a. The commissioner, consistent with article twenty-three-A of the correction law, may refuse to issue or renew a permit required by section 16-130 of this chapter, or may, after notice and the opportunity to be heard, suspend or revoke such a permit when the applicant for such permit or such permittee has been denied a license required by section 16-505 of this code to operate a business for the collection, removal or disposal of trade waste or has had such a license revoked for the reason that such applicant or licensee has been found to lack good character, honesty and integrity by the trade waste commission pursuant to the provisions of title sixteen-A of this code.

b. The commissioner, consistent with article twenty-three-A of the correction law, may refuse to issue to an applicant a permit required by section 16-130 of this chapter and may, after due notice and hearing, in addition to any other penalties provided by law, refuse to renew, suspend or revoke such permit upon the occurrence of any of the following conditions:

1. the applicant or permittee has been convicted of a crime which in the judgment of the commissioner has a direct relationship to his or her fitness or ability to perform any of the activities for which a permit is required under section 16-130 of this chapter; or

2. the applicant or permittee has been found by a court or an administrative agency of competent jurisdiction to have violated:

(A) any provision of section 16-117.1, 16-119, 16-120.1, 16-130, 16-131, 16-131.2, 16-131.3 or 16-131.5 of this chapter; or

(B) any provision of article one hundred fifty-seven of the New York city health code; or

(C) any other law or rule related to the conduct, operation or use of a dump, non-putrescible solid waste transfer station, putrescible solid waste transfer station or fill material operation; or

(D) any federal or state law prohibiting unfair trade practices or conduct in restraint of competition, including but not limited to the Sherman Anti-Trust Act (15 U.S.C. § 1, § 2), the Clayton Act (15 U.S.C. § 18), the Robinson Patman Act (15 U.S.C. § 12, et seq.), the Federal Trade Commission Act (15 U.S.C. § 45, et seq.), and sections 340, et seq., of the general business law or an equivalent offense under the laws of any other jurisdiction; or

3. the commissioner has determined, after consideration of the results of an investigation conducted pursuant to this section, that the applicant or permittee has operated the business for which a permit is required by section 16-130 of this chapter in a manner inconsistent with the provisions of the federal or state laws prohibiting unfair trade practices or conduct in restraint of competition set forth in subparagraph (D) of paragraph two of this subdivision; or

4. the applicant or permittee has violated or failed to comply with any of the conditions for issuance of such permit as provided in this chapter or any of the rules promulgated hereunder.

c. Where the commissioner or the New York city trade waste commission has reasonable cause to believe that a permittee or an applicant for a permit required by section 16-130 of this code may lack good character, honesty and integrity, such applicant or permittee shall, in addition to providing the information required by the rules promulgated pursuant to paragraph two of subdivision a of section 16-131 of this code, also comply with the fingerprinting and disclosure requirements set forth in subdivision b of section 16-508 of this code and pay the fee for the investigation thereof set forth in the rules of the New York city trade waste commission. The commissioner may, after consideration of the results of such investigation, refuse for the reasons set forth in section 16-509 of this code to issue a permit required by section 16-130 of this chapter and, after notice and opportunity to be heard, may revoke or suspend any such permit upon a finding that the applicant or the permittee lacks good character, honesty and integrity.

d. For the purposes of this section, "applicant" or "permittee" shall mean the business of the applicant or permittee and any principal thereof, as the term "principal" is defined in section 16-501 of this code.

e. The New York city trade waste commission or the department of investigation may, at the request of the commissioner, assist the commissioner in any investigation conducted pursuant to this section.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1990/040 and L.L. 1996/042.

§ 16-131.2 Additional powers of the commissioner.

In addition to any other enforcement procedures authorized by law, the commissioner shall have the powers described in this section.

a. The commissioner may order any person violating section 16-130 or 16-131 of this chapter or article one hundred fifty-seven of the New York city health code to discontinue such violation immediately.

b. 1. If the commissioner finds that premises for which a permit is required pursuant to section 16-130 of this chapter are being used either without such permit or in a manner which poses an imminent threat to the public health or safety, then the commissioner may order in writing that (a) such premises be sealed, secured and closed and/or (b) that equipment, vehicles or other personal property used on such premises be removed or sealed and secured. Upon the effective date of such order, no person shall have access to such premises and/or use such equipment except as authorized by the commissioner. Upon such effective date, authorized officers and employees of the department, the department of health and mental hygiene and the New York city police department shall act upon and enforce such order. The finding whether an imminent threat to the public health or safety exists shall be based on factors that include but are not limited to: (i) the quantity of solid waste, or of material listed in subparagraph (b) of paragraph one of subdivision a of section 16-130 of this chapter, that may pose a threat; (ii) the types of solid waste, or of such material listed in such subparagraph, that may pose a threat; and/or (iii) the risk of harm to the public or the environment. For the purpose of this paragraph: "sealed, secured and closed" or "sealed and secured" shall mean the use of any means available to render the premises or any part thereof, and/or any equipment, vehicles or other personal property contained therein, inaccessible or inoperable, including but not limited to the use of a padlock or cinder blocks.

2. Any equipment, vehicles or other personal property removed pursuant to an order issued under paragraph one of this subdivision may be stored in a garage, pound or other place of safety, and the owner or other person lawfully entitled to the possession of such equipment, vehicles or other personal property may be charged with the reasonable costs for removal and storage, payable prior to the release of such equipment, vehicles or other personal property. Equipment, vehicles or other personal property not reclaimed by such owner or other person within ninety days of the notification to such owner or other person that such order has been rescinded shall be deemed abandoned and may be disposed of by the department at a public auction, provided that vehicles deemed abandoned shall be disposed of in a manner consistent with section twelve hundred twenty-four of the vehicle and traffic law and that timely notice of any public auction shall be provided to any record holder of a security interest at the address for such holder set forth in any instrument recorded in the city of New York.

3. Any order to seal, secure and close premises pursuant to paragraph one of this subdivision, or to remove or seal and secure equipment, vehicles or other personal property issued pursuant to such paragraph, shall contain notice of the right to request a hearing within thirty days of delivery of such order and posting of such order pursuant to the first sentence of paragraph four of this subdivision. If a hearing is requested within such thirty day period, the order shall be effective as set forth in the determination of the commissioner. If no hearing is requested within such thirty day period the order shall be effective on the thirtieth day after such delivery and posting pursuant to such sentence. A hearing held pursuant to this paragraph shall be conducted by the department. The hearing officer shall submit recommended findings of fact and a recommended decision to the commissioner, who shall make the final findings of fact and the final determination. Notwithstanding the foregoing provisions of this paragraph, if such order is based upon a finding by the commissioner of an imminent threat to the public health or safety, such order may provide that it shall be effective immediately upon posting pursuant to the first sentence of paragraph four of this subdivision; in such case a hearing shall be held within three business days of a request for such hearing and a determination shall be rendered within four business days of the conclusion of such hearing.

4. Orders of the commissioner issued pursuant to this subdivision shall be served by delivery of the order to the permittee, owner or other person of suitable age and discretion in actual or apparent control of the premises, equipment, vehicles or other personal property, and shall be posted at the premises that have been sealed, secured and closed, or on or in the vicinity of the equipment, vehicles or other personal property that has been sealed and secured, or on the premises from which equipment, vehicles or other personal property has been removed. The commissioner shall ensure that notice is delivered and posted pursuant to this paragraph, and in addition shall ensure that such order is mailed to the permittee at the residence or business address for such permittee set forth in the records of the department, to the record owner of such premises, and any record mortgagee of such premises, at the address set forth in the recorded instrument and to the person designated as owner or agent of the premises or designated to receive real property tax or water bills for the premises at the address for such person contained in one of the files compiled by the department of finance for the purpose of the assessment or collection of real property taxes and water charges or in the file compiled by the department of finance from real property transfer forms filed with the city register upon the sale or transfer of real property, to the owner of such vehicles at the address for such owner set forth in the registration record maintained by the department of motor vehicles pursuant to section four hundred one of the vehicle and traffic law or for vehicles not registered in New York state, such equivalent record in the state of registration, and to any record holder of a security interest in equipment, vehicles or other personal property at the address for such holder set forth in any instrument recorded in the city of New York, and at the address for such holder set forth in any certificate of title issued by the department of motor vehicles pursuant to title ten of the vehicle and traffic law. In addition, such order shall be mailed to the owner of equipment or personal property, other than vehicles, at any address for such owner provided by the permittee or the person to whom such order is delivered pursuant to the first sentence of this paragraph.

5. Where premises have been sealed, secured and closed or equipment, vehicles, or other personal property has been sealed and secured or removed by order of the commissioner issued pursuant to paragraph one of this subdivision, the permittee, owner or other person lawfully entitled to the possession of the premises or equipment, vehicles or other personal property, may at any time provide to the commissioner assurances that the conditions which caused the issuance of such order have been corrected and will not reoccur and any necessary permit will be obtained. Upon receipt of such assurances, the commissioner shall within two business days either issue a written determination that such conditions have not been corrected, or are likely to reoccur, or, if such assurances are satisfactory, rescind such order; provided that no equipment, vehicles or other personal property shall be released after such rescission unless costs for removal and storage owed pursuant to paragraph two of this subdivision have been paid.

6. (a) No person shall remove or cause to be removed the seal from, or otherwise enter without the commissioner's authorization, any premises sealed by order of the commissioner issued pursuant to paragraph one of this subdivision.

(b) No person shall remove or cause to be removed the seal from, or otherwise tamper with or use, any equipment, vehicles or other personal property sealed by order of the commissioner issued pursuant to paragraph one of this subdivision.

(c) Any person who violates this paragraph shall upon conviction be guilty of a misdemeanor and be punished by a fine not to exceed twenty-five thousand dollars, or by imprisonment for a term of not more than one year, or by both such fine and imprisonment.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1990/040.

§ 16-131.3 Removal or abatement of public nuisance.

a. 1. Whenever the commissioner finds that there exists, on premises required to be permitted pursuant to section 16-130 of this chapter, a condition hazardous to public health or safety, the commissioner may declare such premises to be a public nuisance and order the permittee and/or owner to remove or abate such public nuisance as such order shall specify. It shall be the duty of such permittee and/or owner upon whom such an order has been served to remove or abate such public nuisance in the manner and in the time provided by such order.

2. For the purpose of this subdivision, the finding whether a condition hazardous to the public health or safety exists shall be based on factors that include but are not limited to: (i) the quantity of solid waste, or of material listed in subparagraph (b) of paragraph one of subdivision a of section 16-130 of this chapter, that may create a condition hazardous to the public health or safety; (ii) the types of solid waste, or of such material listed in such

subparagraph, that may create such a condition; and/or (iii) the risk of harm to the public or the environment.

b. 1. An order of the commissioner issued pursuant to subdivision a of this section shall specify the work to be performed and shall fix a reasonable time for compliance which shall not be less than thirty days from the date of service of such order, or twenty days after the commissioner's determination pursuant to paragraph four of this subdivision, whichever is later. Such order shall contain a statement that upon the failure of the permittee and/or owner of such premises to comply with the commissioner's order within the stated time, the department may perform the work specified in the order or the department may apply for a court order directing such permittee and/or owner to comply with the commissioner's order or directing the department to perform the work specified in the commissioner's order. Such statement shall also indicate that if any of the work specified in the commissioner's order is performed by or on behalf of the department, the expense incurred in performing such work shall be a debt recoverable from such permittee and/or owner and a lien on the premises, including the land and buildings, with respect to which such order was issued.

2. Service of such order shall be made upon such permittee and/or owner by personal service or by certified mail addressed to the last known address of such permittee and/or owner or in any manner provided for service of process by article three of the civil practice law and rules. The commissioner may serve a copy of such order on any mortgagee or lienor of record in the same manner.

3. A copy of such order shall be filed with the office of the register in the county in which the premises with respect to which such order was issued are situated, provided, that in the county of Richmond, such copy shall be filed with the county clerk.

4. Within fifteen days after service of such order upon the permittee and/or owner, such permittee and/or owner or a mortgagee or lienor upon whom a copy of such order has been served may request a hearing. Such hearing shall be conducted by the department. The hearing officer shall submit recommended findings of fact and a recommended decision to the commissioner, who shall make the final findings of fact and the final determination.

c. If the permittee and/or owner fails to comply with the commissioner's order within the time fixed for compliance pursuant to subdivision b of this section, the department may perform the work specified in the order.

d. As an alternative to the remedy set forth in subdivision c of this section, if the permittee and/or owner fails to comply with the commissioner's order within the time fixed for compliance pursuant to subdivision b of this section, the commissioner may apply to any court of competent jurisdiction, upon such notice and in such manner as the court shall direct, for an order directing the permittee and/or owner to comply with the commissioner's order or directing the department to perform the work specified in the commissioner's order.

e. 1. Whenever the commissioner finds that there exists on premises declared to be a public nuisance pursuant to subdivision a of this section a condition that poses an imminent threat to the public health or safety which requires immediate remedial action, the commissioner may, in his or her discretion, order the permittee and/or owner to remove or abate such public nuisance, or direct the department to remove or abate such public nuisance, and, notwithstanding any provision of this section to the contrary, no hearing shall be required to be held before the time fixed in the order for compliance, or before the department removes or abates such public nuisance, and the time for compliance provided in paragraph one of subdivision b of this section shall not apply to an order issued pursuant to this subdivision. Notice of an order or direction issued pursuant to this subdivision shall be served in the manner prescribed in paragraph two of subdivision b of this section, provided, that if the commissioner determines that service in such manner would result in delay prejudicial to the public health or safety, then the commissioner may serve such order or direction by delivery of a copy thereof to a person of suitable age and discretion in actual or apparent control of the premises to which it relates, or, if service cannot be made in such manner, by copy posted upon the premises to which it relates. An order or direction served in the manner prescribed in this subdivision shall take effect when delivered or when posted. After such order or direction takes effect, the commissioner shall serve such order or direction in the manner prescribed in paragraph two of subdivision b of this section. Such additional service shall include notice of the earlier service of such order or direction.

2. Notwithstanding any other provision of this section, if an order or direction is issued pursuant to paragraph one of this subdivision, a hearing shall be held within three business days of a request for such hearing and a determination shall be rendered within four business days of the conclusion of such hearing. Such hearing shall be conducted by the department. The hearing officer shall submit recommended findings of fact and a recommended decision to the commissioner, who shall make the final findings of fact and the final determination.

3. For the purpose of this subdivision, the finding whether an imminent threat to the public health or safety exists shall be based on factors that include but are not limited to: (i) the quantity of solid waste, or of material listed in subparagraph (b) of paragraph one of subdivision a of section 16-130 of this chapter, that may pose a threat; (ii) the types of solid waste, or of such material listed in such subparagraph, that may pose a threat; and/or (iii) the risk of harm to the public or the environment.

f. The commissioner may request the assistance of the department of health or any city, state or federal agency to perform work on its behalf pursuant to this section.

g. 1. The expense of the department with respect to any work performed by or on behalf of the department pursuant to subdivisions c, d and e of this section shall be a debt recoverable from the permittee and/or owner and a lien upon the premises, including the land and buildings, with respect to which such work was performed.

2. The department shall keep a record of all work performed by or on behalf of the department. Such records shall be accessible to the public during business hours. Within thirty days after the issuance of a purchase or work order for such work, such order shall be entered on the records of the department. Such entry shall constitute notice to all parties.

3. All such expenses shall constitute a lien upon the premises when the amount thereof shall have been definitely computed as a statement of account by the department and the department shall cause to be filed in the office of the city collector an entry of the account stated in the book in which such charges against the premises are to be entered. Such lien shall have a priority over all other liens and encumbrances on the premises except for the lien of taxes and assessments. However, no lien created pursuant to this section shall be enforced against a subsequent purchaser in good faith or mortgagee in good faith unless such transaction occurred after the date of entry of a purchase or work order on the records of the department pursuant to paragraph two of this subdivision.

4. A notice thereof stating the amount due and the nature of the charge shall be mailed by the city collector within five days after such entry to the last known address of the person whose name appears on the records in the office of the city collector as being the owner or agent or as the person designated by the owner to receive tax bills or, where no name appears, to the premises, addressed to either the owner or the agent. Such notice shall have stamped or printed thereon a reference to this section.

5. If such charge is not paid within thirty days from the date of entry, it shall be the duty of the city collector to receive interest thereon at the rate of interest applicable to such property for a delinquent tax on real property to be calculated to the date of payment from the date of entry.

6. Such charge and the interest thereon shall continue to be, until paid, a lien on the premises. Such charge and interest may be collected and the lien thereof may be foreclosed in the manner provided by law for the collection and foreclosure of taxes, sewer rents, sewer surcharges and water charges due and payable to the city and the provisions of chapter four of title eleven of the code shall apply to such charges and the interest thereon and the lien thereof.

7. (a) In any proceedings to enforce or discharge the lien, the validity of the lien shall not be subject to challenge based on (i) the lawfulness of the work done; or (ii) the propriety and accuracy of the items of expenses for which a lien is claimed, except as provided in this paragraph.

(b) No such challenge may be made except by (i) the owner of the property, or (ii) a mortgagee or lienor whose mortgage or lien would but for the provisions of this section have priority over the department's lien.

(c) An issue specified in subparagraph (a) which was decided or could have been contested in a prior court proceeding to secure a court order

pursuant to subdivision d of this section shall not be open to reexamination, but if any mortgagee or lienor of record was not served with an order of the commissioner pursuant to paragraph two of subdivision b and with notice of such proceeding, his or her mortgage or lien shall have the same priority over the lien of the department that it would have had but for the provisions of this section.

8. In addition to establishing a lien, the department may recover such expenses and interest by bringing an action against the permittee and/or owner. The institution of such action shall not suspend or bar the right to pursue any other remedy provided by law for the recovery of such debt.

h. Nothing contained in this section shall be construed to restrict authority to provide for the abatement of a public nuisance conferred upon any agency of the city by any other provision of law.

i. For purposes of this section, "owner" means a person having title to any premises or structure; a tenant, lessee or occupant; a mortgagee or vendee in possession; a trustee in bankruptcy; a receiver or any other person having legal ownership or control of any premises or structure.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1990/040.

§ 16-131.4 Impoundment and forfeiture.

a. Any equipment, vehicles or other personal property that has been used or is being used to violate the provisions of section 16-130, 16-131, 16-131.2 or 16-131.3 of this chapter or article one hundred fifty-seven of the New York city health code may be impounded by the department pending forfeiture pursuant to the provisions of this section. Such equipment, vehicles or other personal property shall be released by the end of the following business day unless the department ascertains either (i) that the owner of the premises upon which the equipment, vehicles or other personal property has been or is being used has not obtained a permit required by section 16-130 of this chapter, (ii) that the owner has been convicted of or found liable for a violation of section 16-130, 16-131, 16-131.2 or 16-131.3 of this chapter, or article one hundred fifty-seven of the New York city health code, in a civil or criminal judicial proceeding or in a proceeding before an agency of competent jurisdiction and such violation was committed within eighteen months prior to the violation of law for which such equipment, vehicles or other personal property was impounded, or (iii) that the alleged violation of such sections or article for which such equipment, vehicles or other personal property was impounded involves the unlawful handling, processing, transportation, disposal or storage of a material identified as a hazardous waste or an acute hazardous waste in regulations promulgated pursuant to section 27-0903 of the environmental conservation law.

b. Notice of impoundment and intended forfeiture shall be served together with the notice of the violation of law for which equipment, vehicles or other personal property was impounded. Such notice shall contain notice of the right to request a hearing before the department with respect to whether there is reasonable cause to believe that such equipment, vehicles or other personal property will be subject to forfeiture; a hearing shall be provided within three business days of such request, and a determination shall be rendered within four business days of the conclusion of such hearing. The hearing officer shall submit recommended findings of fact and a recommended decision to the commissioner, who shall make the final findings of fact and the final determination. If the commissioner determines that there is not reasonable cause to believe that such equipment, vehicles or other personal property will be subject to forfeiture, the department shall release such equipment, vehicles or other personal property, and no charges or fees shall be imposed as a condition of such release. If the commissioner determines that there is reasonable cause to believe that such equipment, vehicles or other personal property will be subject to forfeiture, the department may retain such equipment, vehicles or other personal property pending forfeiture pursuant to the provisions of this section. If after adjudication of the violation of law for which such equipment, vehicles or other personal property was impounded the court or agency of competent jurisdiction finds the respondent not guilty of or not liable for such violation, such equipment, vehicles or other personal property shall be released forthwith, and no charges or fees shall be imposed as a condition of such release. If after adjudication of such violation of law, the court or agency of competent jurisdiction finds the respondent guilty of or liable for such violation, then upon demand of the respondent the department shall either release such equipment, vehicles or other personal property upon payment of all outstanding fines and civil penalties, and removal charges and storage fees, or commence a forfeiture proceeding pursuant to this section within ten days after such demand.

c. In addition to any other penalties provided in this section, the interest of an owner in any equipment, vehicles or other personal property impounded pursuant to subdivision a of this section shall be subject to forfeiture upon notice and judicial determination thereof if such owner either (i) has not obtained a permit required by section 16-130 of this chapter and has been convicted of or found liable for a violation of section 16-130, 16-131, 16-131.2, or 16-131.3 of this chapter, or article one hundred fifty-seven of the New York city health code, in a civil or criminal judicial proceeding or in a proceeding before an agency of competent jurisdiction, (ii) has been convicted of or found liable for a violation of one of such sections, or such article, two or more times, in a civil or criminal judicial proceeding or in a proceeding before such agency, both of which violations were committed within an eighteen month period, or (iii) has been convicted of or found liable for a violation of one of such sections or such article in a civil or criminal judicial proceeding or in a proceeding before such agency where such violation involved the unlawful handling, processing, transportation, disposal or storage of a material identified as a hazardous waste or an acute hazardous waste in regulations promulgated pursuant to section 27-0903 of the environmental conservation law.

d. Except as hereinafter provided, the city agency having custody of equipment, vehicles or other personal property, after judicial determination of forfeiture, shall no sooner than thirty days after such determination upon a notice of at least five days, sell such forfeited equipment, vehicles or other personal property at public sale, provided that no sooner than thirty days after judicial determination of forfeiture or the date of final determination of a claim asserted pursuant to this subdivision, whichever is later, the city may instead convert such equipment, vehicles or other personal property to its own use. Any person, other than an owner whose interest is forfeited pursuant to this section, who establishes a right of ownership in equipment, vehicles or other personal property, including a part ownership or security interest, shall be entitled to delivery of the equipment, vehicles or other personal property if such person:

1. redeems the ownership interest which was subject to forfeiture by payment to the city of the value thereof; and

2. pays the reasonable expenses of the safekeeping of the vehicle between the time of seizure and such redemption; and

3. asserts a claim within thirty days after judicial determination of forfeiture. Notwithstanding the foregoing provisions establishment of a claim shall not entitle such person to delivery if the city establishes that the activity in violation of law for which the equipment, vehicles or other property was seized was expressly or impliedly permitted by such person.

e. For purposes of this section, "owner" means a person, other than a holder of a security interest, having the property in or title to equipment, vehicles or other personal property, including but not limited to a person entitled to use and possession of equipment, vehicles or other personal property subject to a security interest in another person and also includes any lessee or bailee having exclusive use thereof.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1990/040.

§ 16-131.5 Inquiries and subpoena power.

The commissioner shall have the power to conduct such inquiries as may assist him or her in the performance of the functions of the department pursuant to sections 16-117.1, 16-120.1, 16-119, 16-130, 16-131, 16-131.1, 16-131.2, 16-131.3, 16-131.4 or 16-133 of this chapter and for such purpose shall have subpoena power to compel the attendance of witnesses, to administer oaths, examine witnesses and to compel the production of books, papers and documents.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1990/040.

§ 16-132 Leases of advertising spaces on litter baskets.

§ 16-132 Lease of advertising space on litter baskets.

Notwithstanding any other provision of local law, the commissioner shall have the power, subject to the approval of the board of estimate, to lease, rent or otherwise grant advertising space to any person on any basket, container or receptacle placed in a public place by the department or its authorized agent for the public disposal of litter and to collect rentals, fees, charges or accept any other consideration for the lease, rental or other grant of such advertising space.

§ 16-132.1 Dog waste bag dispensers on public litter baskets.

a. *Definitions.* For the purposes of this section, the following terms have the following meanings:

Dog waste bag dispenser. The term “dog waste bag dispenser” means any container manufactured for the purpose of containing and dispensing dog waste bags.

Public litter basket. The term “public litter basket” means a basket, container, or receptacle placed in a public place by the department or an authorized agent of the department for the purpose of public disposal of litter.

b. The commissioner shall establish a program to install no less than 1,200 dog waste bag dispensers on public litter baskets citywide, provided that installations occur in all 5 boroughs, and installations are prioritized in areas where there is the greatest need for dog waste mitigation. Such program shall include criteria for the installation of such dispensers, including the type of litter basket on which a dog waste bag dispenser may be installed. The department may engage 1 or more local not-for-profit organizations, civic organizations, or community groups to refill on a volunteer basis any dog waste bag dispenser with dog waste bags no less often than once each month, and where no such organization or group can be identified the department shall refill each such dispenser no less often than once each month. The department may, in its discretion, supply dog waste bags to any organization or group that has agreed to refill on a volunteer basis any dog waste bag dispenser. The department shall share information about the program and the eligibility criteria with community boards and council members and post such information regarding such program on the department’s website.

c. No later than March 1, 2030, the commissioner shall submit to the mayor and the speaker of the council a report that assesses the impact of the program established pursuant to subdivision b of this section on the number of complaints from the public about dog waste. The report shall also include a recommendation as to whether such program should continue.

(L.L. 2026/139, 9/12/2026, eff. 3/11/2027)

Editor's note: Pursuant to L.L. 2026/139, this section expires and is repealed on June 30, 2030. For related unconsolidated provisions, see Appendix A at L.L. 2026/139.

§ 16-133 Enforcement.

a. 1. Any person who violates any provision of section 16-129, 16-130, 16-131, 16-131.2, 16-131.3 or 16-131.5 of this chapter, or article one hundred fifty-seven of the New York city health code, shall be guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine not to exceed twenty-five thousand dollars, or by imprisonment for a term of not more than one year, or by both such fine and imprisonment.

2. In addition to any other penalties provided under paragraph one of this subdivision, any violation of section 16-129, 16-130, 16-131, 16-131.2, 16-131.3 or 16-131.5 of this chapter, or article one hundred fifty-seven of the New York city health code, shall be punishable by a civil penalty of not less than twenty-five hundred dollars nor more than ten thousand dollars for the first violation, not less than five thousand nor more than ten thousand dollars for the second violation committed in a period of three years, and ten thousand dollars for the third and any subsequent violation committed in such period. Every owner of premises or of equipment, vehicles or other personal property shall be punishable by a civil penalty of not less than twenty-five hundred dollars nor more than ten thousand dollars for the first violation, not less than five thousand nor more than ten thousand dollars for the second violation committed in a period of three years, and ten thousand dollars for the third and any subsequent violation committed in such period by any person using or operating the same, in the business of such owner or otherwise, with the permission, express or implied, of such owner. In the case of a continuing violation, every day's continuance thereof may be deemed to be a separate and distinct violation. Civil penalties shall be recovered in a civil action brought in the name of the commissioner or in a proceeding before the environmental control board, provided however that civil penalties for violations of article one hundred fifty-seven of the New York city health code may only be recovered as provided by law for violations of the New York city health code. As used in this paragraph, "owner" means a person, other than a holder of a security interest, having the property in or title to premises or equipment, vehicles or other personal property, including but not limited to a person entitled to use and possession of premises or equipment, vehicles or other personal property subject to a security interest in another person and also includes any lessee or bailee having exclusive use thereof.

b. 1. Any person who violates any provision of section 16-117 of this chapter shall be guilty of a violation, and upon conviction thereof shall be punished by a fine of not less than two hundred fifty dollars nor more than five hundred dollars, or by imprisonment for a term of not more than fifteen days, or by both such fine and imprisonment.

2. In addition to any other penalties provided under paragraph one of this subdivision, any violation of section 16-117 of this chapter shall be punishable by a civil penalty of not less than two hundred fifty dollars nor more than five hundred dollars. Civil penalties shall be recovered in a civil action brought in the name of the commissioner or in a proceeding before the environmental control board.

c. The commissioner shall have the power to issue notices of violation for violations of article one hundred fifty-seven of the New York city health code and such notices of violation shall be returnable as provided by law for violations of the New York city health code.

d. The commissioner of health shall have the power to issue notices of violation for violations of sections 16-130 and 16-131 of this chapter, and such notices of violation shall be returnable in a civil action brought in the name of the commissioner of health or in a proceeding before the environmental control board.

e. Nothing contained in this section shall be construed to restrict existing authority of any agency to enforce any other provision of law, including but not limited to any provision of the New York city health code.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 1990/040.

§ 16-134 Comprehensive study of commercial solid waste management system required.

a. 1. "Long haul transport vehicle" shall mean any motor vehicle used to remove solid waste or other material from a putrescible or non-putrescible solid waste transfer station for final disposal, reuse or recycling.

2. "Private carter" shall mean any individual or business entity required to obtain a license from the trade waste commission pursuant to subdivision a of section 16-505 of this title.

3. "Trade waste commission" shall mean the New York city trade waste commission as established by section 16-502 of this title.

b. The department, in consultation with the trade waste commission, shall enter into one or more contracts for the performance of a comprehensive

study of the existing commercial solid waste management system within the city of New York. In performing the study, the department and/or the contractor or contractors shall solicit and consider the views of elected officials, the citywide recycling advisory board, the borough solid waste advisory boards and the public, including residents of affected communities, environmental advocacy organizations, transfer station operators, private carters, business entities and academicians, and respond to substantive issues raised. The study shall include, but need not be limited to, an analysis of the following.

1. the effectiveness of procedures employed and the criteria applied by the department for the issuance and renewal of permits for the operation of putrescible and non-putrescible solid waste transfer stations in minimizing potential adverse environmental economic and public health impacts on the communities in which such transfer stations are located by examining such issues as (i) the effectiveness of the criteria applied by the department to the siting of putrescible and non-putrescible solid waste transfer stations, including the aggregate effect of the geographic proximity of solid waste transfer stations to each other and (ii) the scope and effectiveness of the operational restrictions imposed upon putrescible and non-putrescible solid waste transfer stations including the hours of operation and any performance standards established in the zoning resolution of the city of New York;

2. the manner in which all applicable laws, rules and regulations relating to the operation of putrescible and non-putrescible solid waste transfer stations, private carters and long haul transport vehicles are enforced, including who should be responsible for such enforcement and the effectiveness of such enforcement in obtaining compliance with such laws, rules and regulations and in minimizing potential environmental economic and public health impacts and an analysis of rules relating to routes for transporting material to or from such transfer stations;

3. the means and potential effects of limiting the number and capacity of putrescible and non-putrescible solid waste transfer stations in the city;

4. the size and type of vehicles that should be authorized to transport solid waste to or from putrescible and non-putrescible solid waste transfer stations and fuel-type requirements for such vehicles;

5. whether putrescible and non-putrescible solid waste transfer stations and city-owned marine transfer stations should receive and process both residential and commercial solid waste and the options for transporting such solid waste to and from such transfer stations, including an analysis of potential environmental, economic and public health impacts; and

6. potential environmental, economic and public health impacts on communities in which large numbers of privately-owned putrescible and non-putrescible solid waste transfer stations are located such as, but not limited to, potential impacts related to air quality, water quality, odors, traffic congestion and noise.

c. The study required by subdivision b of this section, and a report containing a detailed analysis of the findings of such study, as well as recommendations based on such analysis and findings, shall be completed no later than eighteen months after registration of the consultant contract and at least two months before the next draft comprehensive solid waste management plan is submitted to the council or the New York state department of environmental conservation. Such report shall be submitted to the mayor and the council immediately upon its completion. A preliminary report containing data necessary to perform the analyses described in subdivision b of this section shall be submitted by the department to the mayor and the council during or before the last quarter of calendar year two thousand one.

d. Such study shall be performed and such report shall be prepared in a manner designed to assist in the preparation of the next comprehensive solid waste management plan for the city of New York required by section 27-0107 of the New York state environmental conservation law.

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 2000/074.

§ 16-135 Snow removal volunteer registry.

a. The department or such entity as the commissioner delegates, shall:

1. assist organizations such as local not-for-profit organizations, civic organizations and community groups to establish registries of volunteers willing to help remove snow on behalf of persons who have difficulty fulfilling their obligations under section 16-123 of this chapter due to infirmity, illness or physical incapacity;

2. assist such organizations with volunteer recruitment efforts; and

3. assist such organizations in their efforts to inform the public about how to request assistance from the volunteers in their registries.

b. The provisions of this section shall not alter the obligations of any persons under section 16-123 of this chapter.

c. Notwithstanding the provisions of subdivision a of this section, snow removal volunteers shall not be considered employees or volunteers of the city and the city does not guarantee or warranty any of the work performed by snow removal volunteers, nor shall the city indemnify snow removal volunteers for any claims, damages, losses, and expenses arising out of or resulting from any act, conduct, omission, negligence, misconduct or unlawful act performed pursuant to this section.

§ 16-140 Solid waste management plan.

(a) No final solid waste management plan for the city shall be submitted pursuant to article twenty-seven of the environmental conservation law unless such submission has been authorized by the council by local law, except as provided in subdivisions c, d and e of this section.

(b) A draft solid waste management plan for the city which is to be submitted pursuant to article twenty-seven of the environmental conservation law shall be presented to the council at or before the time of such submission, but in no event later than the thirty-first day of March, nineteen hundred ninety-two. Any comments by the New York State department of environmental conservation shall be transmitted to the council immediately upon their receipt.

(c) A proposed final solid waste management plan shall be presented to the council within forty-five days after the receipt of comments by the New York State department of environmental conservation but in no event later than the twenty-sixth day of June, nineteen hundred ninety-two. The council shall, not later than the thirty-first day of August, nineteen hundred ninety-two, pass a local law which either grants or denies the authority for the submission of a proposed final solid waste management plan for the city.

(d) Notwithstanding the provisions of subdivision c of this section, in the event that on or before the tenth day of July, nineteen hundred ninety-two, the council passes a local law which denies the authority for the submission of a proposed final solid waste management plan for the city pursuant to article twenty-seven of the environmental conservation law and the mayor disapproves such law, such proposed plan shall not be submitted until either two-thirds of all the members of the council have voted whether to repass such local law, or the period within which such repassing may occur has expired, pursuant to section thirty-seven of the charter. In the event that such local law is repassed by a two-thirds vote of all the members of the council, such proposed plan shall not be submitted.

(e) Notwithstanding the provisions of subdivisions a and c of this section, in the event the council does not act in accordance with subdivision c of this section, such proposed final solid waste management plan may be submitted pursuant to article twenty-seven of the environmental conservation law.

§ 16-141 Uniform civil penalties for littering and public urination.

a. Notwithstanding any inconsistent provision of law, the civil penalties for the violation of the prohibition against urination set forth section 1-04(k) of title 56 of the rules of the city of New York, or any successor rule of the department of parks and recreation that prohibits public urination, shall be no greater than the civil penalties established in paragraph b of subdivision 9 of section 16-118 of the code.

b. Notwithstanding any inconsistent provision of law, the civil penalties for the violation of the first two sentences of section 1-04(c)(1) of title 56 of the rules of the city of New York, or any successor rules of the department of parks and recreation that prohibit littering and require the use of receptacles for refuse disposal, shall be no greater than the civil penalties established in paragraph c of subdivision 9 of section 16-118 of the code.

(L.L. 2016/075, 6/13/2016, eff. 8/12/2016)

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 2016/075.

§ 16-142 Violations received after a disaster.

a. For the purposes of this section, the term " **covered person**" means any owner, lessee, tenant or occupant of a one-, two- or three-family residential building or of a premises or lot that contained such a building immediately preceding a natural or man-made disaster.

b. It shall be an affirmative defense to a violation of subdivision two of section 16-118 for any covered person that:

1. A natural or man-made disaster, as determined by the commissioner, occurred within the prior 30 days preceding issuance of such violation and such building or premises is within the area affected by such disaster; or

2. The covered person was displaced by such disaster and such building or premises was undergoing or scheduled for work or acquisition through a city-operated disaster recovery program responding to such disaster.

c. It shall be an affirmative defense to a violation of subdivisions a or b of section 16-123 for any covered person who is displaced by a natural or man-made disaster, as determined by the commissioner, that such building or lot was undergoing or scheduled for work or acquisition by a city-operated disaster recovery program responding to such disaster.

d. The commissioner may establish by rule an affirmative defense, in addition to those enumerated in subdivisions b and c of this section, to any requirement of this chapter for any covered person that in the commissioner's determination cannot reasonably comply with such requirement due to (i) the direct effects of a natural or man-made disaster or (ii) a displacement caused by such disaster or the recovery therefrom.

(L.L. 2016/059, 5/10/2016, eff. 8/8/2016)

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 2016/059.

§ 16-143 Corrective action request program.

a. *Definitions.* For purposes of this section, the term "corrective action request" or "CAR" means a formal notice by the department that a condition is in violation of this title and that a request is being made for action to be taken by the respondent to whom such notice is addressed to correct the condition so described.

b. No later than October 1, 2021, the commissioner shall create a program for the issuance of corrective action requests for certain first-time violations of this title.

c. *Corrective action request.*

1. The corrective action request shall provide notice of the nature of the violation and that the law authorizes civil penalties for such violation.

2. The department shall issue a corrective action request to a person in lieu of a notice of violation for a condition that would violate, for the first time, the following sections of this chapter:

(a) Paragraphs (1), (2), (4) and (5) of subdivision b of section 10-169;

(b) Subdivision b of section 16-116; and

(c) Subdivision g of section 16-308.

3. A corrective action request may be served by either of the following means:

(a) Personal service; or

(b) Service in accordance with clause (ii) of subparagraph (a) of paragraph 2 of subdivision d of section 1049-a of the charter of the city of New York. Notwithstanding any inconsistent provision of law, service pursuant to this subparagraph shall be complete on the date a copy of the corrective action request is mailed to the respondent.

4. Any corrective action requested by a corrective action request shall be performed within 30 days of service of such request pursuant to paragraph 3 of this subdivision, unless issuance of such corrective action request is protested as provided herein.

5. Within 14 days after the date of service of the corrective action request pursuant to paragraph 3 of this subdivision, unless a different time is specified on such request, the respondent may protest the issuance of such request in the manner described on such request.

6. Protests shall be reviewed by the department and a final determination of the protest shall be made within a reasonable period of time.

d. On or before July 1, 2022, the commissioner shall report to the speaker of the council and the mayor about the program established pursuant to this section. Such report shall include, but not be limited to, the following information:

1. The number of corrective action requests issued and the resolution of such requests;

2. The number of notices of violations issued for the violations described in paragraph 2 of subdivision c.

3. The impact of the program on operations of the department, street cleanliness, and quality of life; and

4. Any recommendations for improvement of such program.

(L.L. 2021/080, 7/18/2021, eff. 11/15/2021)

Editor's note: For related unconsolidated provisions, see Appendix A atL.L. 2021/080.

§ 16-144 Zero waste goal.

a. *Definitions.* For purposes of this section, the term “citywide-generated recyclable waste” means all recyclable materials, as defined in section 16-303, collected within the city by the department and by entities licensed to collect trade waste pursuant to title 16-A.

b. *Diversion of citywide-generated recyclable waste.* The department shall establish a goal of diverting citywide-generated recyclable waste by 100 percent by calendar year 2030 from landfills or incinerators.

c. If the department determines that the citywide-generated recyclable waste diversion goal established pursuant to subdivision b of this section is not feasible despite the best efforts of city government, the department shall report such findings and make recommendations with respect to policies, programs, and actions that may be undertaken to achieve such diversion, as part of the department's annual zero waste report required pursuant to subdivision b of section 16-316.5.

(L.L. 2023/086, 7/9/2023, eff. 7/9/2023)

§ 16-145 Removal of fallen tree limbs, branches, and vegetation after severe weather.

a. *Definitions.* For the purposes of this section, the following terms have the following meanings:

Severe weather. The term “severe weather” includes but is not limited to rain, sleet, ice, snow, and wind, or any combination thereof that causes widespread tree damage.

Street. The term “street” has the same meaning as in section 16-460.

Tree. The term “tree” has the same meaning as in section 18-103.

Vegetation. The term “vegetation” has the same meaning as in section 18-103.

b. The department shall assist the department of parks and recreation in removing tree limbs, branches, and vegetation fallen from trees under the jurisdiction of the department of parks and recreation that obstruct streets after severe weather. Such removals may be conducted after the department of sanitation receives notice of such fallen tree limbs, branches, or vegetation by the department discovering the fallen tree limbs, branches, or vegetation, through the 311 customer service center, or through referral from the department of parks and recreation. Such assistance shall not take precedence over the department’s core duties. Such removals shall take place within 10 days of the department receiving such notice, except that such removals need not take place within 10 days if a state of emergency has been declared by the mayor, the governor of the state of New York, or by the president of the United States.

c. The department is not responsible for removing downed trees or vegetation, or any portion thereof, if such removal requires specialized equipment such as cutting tools, ropes, aerial lifts, or cranes.

d. This section does not interfere with the commissioner of parks and recreation’s jurisdiction or responsibilities over trees and vegetation pursuant to section 18-104.

(L.L. 2024/018, 1/20/2024, eff. 1/20/2024)

§ 16-146 Dog waste complaints.

No later than 14 days after the department receives 7 or more credible complaints of dog waste on the same city block within a 7-day period, the commissioner shall dispatch employees of the department to evaluate the conditions on such block and enforce section 161.03 of the health code and section 1310 of the public health law as appropriate.

(L.L. 2026/154, 10/10/2026, eff. 10/10/2026)